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**U.S. District Court - District of Colorado**  
**District of Colorado (Denver)**  
**CIVIL DOCKET FOR CASE #: 1:15-cv-02785-RM-NYW**

Brandt et al v. Honnecke et al  
Assigned to: Judge Raymond P. Moore  
Referred to: Magistrate Judge Nina Y. zzz\_Wang-MJ  
Case in other court: USCA for the Federal Circuit, 20-01753  
USCA for the Federal Circuit, 20-01761  
Cause: 15:1126 Patent Infringement

Date Filed: 12/22/2015  
Date Terminated: 06/11/2019  
Jury Demand: Both  
Nature of Suit: 830 Patent  
Jurisdiction: Federal Question

**Plaintiff**

**Steven Lee Brandt**  
*an individual*

represented by **Alyssa Kaye Sandrowitz**  
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**Plaintiff**

**James Clay Walters**  
*an individual*

represented by **Alyssa Kaye Sandrowitz**  
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**Brian D. Smith**  
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*TERMINATED: 09/06/2017*

**Patricia Yih-Ting Ho**  
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*TERMINATED: 09/06/2017*

**William W. Mauke**  
(See above for address)  
*ATTORNEY TO BE NOTICED*

**Plaintiff**

**Colorado Box Company, Inc.**  
*a Colorado corporation*

represented by **Alyssa Kaye Sandrowitz**  
(See above for address)

*ATTORNEY TO BE NOTICED*

**Brian D. Smith**

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**Ian Richard Walsworth**

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**Patricia Yih-Ting Ho**

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*TERMINATED: 09/06/2017*

**William W. Mauke**

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*ATTORNEY TO BE NOTICED*

V.

**Defendant**

**Von Honnecke**

*an individual*

represented by **Scott L. Terrell**

Scott L. Terrell, Attorney at Law

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*TERMINATED: 03/15/2019*

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**Defendant**

**Chase Honnecke**  
*an individual*

represented by **Scott L. Terrell**  
(See above for address)  
*TERMINATED: 03/15/2019*  
*LEAD ATTORNEY*

**Gregory Scot Tamkin**  
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**Scott P. Sinor**  
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*ATTORNEY TO BE NOTICED*

**Stephen Roger Weingold**  
(See above for address)  
*ATTORNEY TO BE NOTICED*

**Defendant**

**S&H Heating, A/C, Sheetmetal Co.**  
*TERMINATED: 05/05/2016*

represented by **Scott L. Terrell**  
(See above for address)  
*TERMINATED: 03/15/2019*  
*LEAD ATTORNEY*

**Gregory Scot Tamkin**  
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**Scott P. Sinor**  
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*ATTORNEY TO BE NOTICED*

**Stephen Roger Weingold**  
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*ATTORNEY TO BE NOTICED*

**Defendant**

**S&H Sheet Metal, Inc.**  
*a Colorado corporation*

represented by **Scott L. Terrell**  
(See above for address)  
*TERMINATED: 03/15/2019*  
*LEAD ATTORNEY*

**Gregory Scot Tamkin**  
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**Scott P. Sinor**  
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**Stephen Roger Weingold**  
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**Counter Claimant**

**Chase Honnecke**

represented by **Scott L. Terrell**  
(See above for address)  
*TERMINATED: 03/15/2019*  
*LEAD ATTORNEY*

**Gregory Scot Tamkin**  
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**Counter Claimant**

**Von Honnecke**

represented by **Scott L. Terrell**  
(See above for address)  
*TERMINATED: 03/15/2019*  
*LEAD ATTORNEY*

**Gregory Scot Tamkin**  
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**Steven Lee Brandt**

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**James Clay Walters**

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| Date Filed | #                        | Docket Text                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
|------------|--------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 12/22/2015 | <a href="#"><u>1</u></a> | COMPLAINT against Chase Honnecke, Von Honnecke, S&H Heating, A/C, Sheetmetal Co. (Filing Fee: \$400.00, Receipt Number: #72230), filed by Steven Lee Brandt, James Clay Walters. (Attachments: # <a href="#"><u>1</u></a> Civil Cover Sheet)(amenz, ) (Additional attachment(s) added on 12/22/2015: # <a href="#"><u>2</u></a> Civil Cover Sheet) (amenz, ). (Entered: 12/22/2015)                                                                                                            |
| 12/22/2015 | 2                        | Case assigned to Magistrate Judge Gordon P. Gallagher.Text Only Entry. (amenz, ) (Entered: 12/22/2015)                                                                                                                                                                                                                                                                                                                                                                                         |
| 01/11/2016 | <a href="#"><u>3</u></a> | <i>Defendant/Counterclaim Plaintiffs'</i> ANSWER to <a href="#"><u>1</u></a> Complaint, Attorney Scott Lane Terrell added to party Chase Honnecke(pty:dft), Attorney Scott Lane Terrell added to party Von Honnecke (pty:dft), Attorney Scott Lane Terrell added to party S&H Heating, A/C, Sheetmetal Co.(pty:dft), First COUNTERCLAIM against Steven Lee Brandt, James Clay Walters by Chase Honnecke, Von Honnecke, S&H Heating, A/C, Sheetmetal Co..(Terrell, Scott) (Entered: 01/11/2016) |
| 01/12/2016 | <a href="#"><u>4</u></a> | ORDER TO SHOW CAUSE by Magistrate Judge Gordon P. Gallagher on 1/12/16. (dkals, ) (Entered: 01/12/2016)                                                                                                                                                                                                                                                                                                                                                                                        |
| 01/13/2016 | <a href="#"><u>5</u></a> | AFFIDAVIT of Service upon S&H Heating, A/C, Sheetmetal Co. (dkals, ) (Entered: 01/14/2016)                                                                                                                                                                                                                                                                                                                                                                                                     |

|            |                    |                                                                                                                                                                                                                                                                                                                                                                                      |
|------------|--------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 01/13/2016 | <a href="#">6</a>  | Exhibits. (Attachments: # <a href="#">1</a> Exhibit, # <a href="#">2</a> Exhibit, # <a href="#">3</a> Exhibit, # <a href="#">4</a> Exhibit, # <a href="#">5</a> Exhibit, # <a href="#">6</a> Civil Cover Sheet)(dkals, ) (Entered: 01/14/2016)                                                                                                                                       |
| 02/10/2016 | <a href="#">7</a>  | RESPONSE TO <a href="#">4</a> ORDER TO SHOW CAUSE by Plaintiffs Steven Lee Brandt, James Clay Walters. (dkals, ) (Entered: 02/11/2016)                                                                                                                                                                                                                                               |
| 02/10/2016 | <a href="#">8</a>  | MOTION entitled "Amendment to Claim" by Plaintiff Steven Lee Brandt, James Clay Walters. (Attachments: # <a href="#">1</a> Proposed Document)(dkals, ) (Entered: 02/11/2016)                                                                                                                                                                                                         |
| 02/22/2016 | <a href="#">9</a>  | CERTIFICATE of Mailing re: Documents <a href="#">7</a> and <a href="#">8</a> by Plaintiffs Steven Lee Brandt, James Clay Walters. (dkals, ) (Entered: 02/23/2016)                                                                                                                                                                                                                    |
| 02/29/2016 | <a href="#">10</a> | MINUTE ORDER granting <a href="#">8</a> Motion to Amend Complaint. The Clerk of Court is instructed to file the proposed Amended Complaint. Entered by Magistrate Judge Gordon P. Gallagher on 02/29/16.(jhawk, ) (Entered: 02/29/2016)                                                                                                                                              |
| 02/29/2016 | <a href="#">11</a> | AMENDED COMPLAINT against Chase Honnecke, Von Honnecke, S&H Heating, A/C, Sheetmetal Co., filed by James Clay Walters, Steven Lee Brandt.(jhawk, ) (Entered: 02/29/2016)                                                                                                                                                                                                             |
| 02/29/2016 | <a href="#">12</a> | ORDER DRAWING CASE. ORDERED that this case shall be drawn to a presiding judge, and when applicable to a magistrate judge. by Magistrate Judge Gordon P. Gallagher on 2/29/2016. (agarc, ) (Entered: 03/01/2016)                                                                                                                                                                     |
| 02/29/2016 | 13                 | CASE REASSIGNED pursuant to <a href="#">12</a> Order Drawing Case. This case is reassigned to Magistrate Judge Nina Y. Wang. All future pleadings should be designated as 15-cv-02785-NYW. (Text Only Entry) (agarc, ) (Entered: 03/01/2016)                                                                                                                                         |
| 03/01/2016 | <a href="#">14</a> | Magistrate Judge consent form issued pursuant to D.C.COLO.LCivR 40.1, direct assignment of civil actions to full time magistrate judges. (agarc, ) (Entered: 03/01/2016)                                                                                                                                                                                                             |
| 03/01/2016 | <a href="#">15</a> | Report re Patent Report on the filing of an action emailed ( <b>NEF</b> ) to the Director of the U.S. Patent and Trademark Office. (amenz, ) (Entered: 03/01/2016)                                                                                                                                                                                                                   |
| 03/01/2016 | <a href="#">16</a> | ORDER by Magistrate Judge Nina Y. Wang on 3/1/16 Setting Scheduling/Planning Conference and Setting Deadline for Filing of Consent/Non-Consent Form. Consent Form due by 3/21/2016. Proposed Scheduling Order due by 3/28/2016. Scheduling and Planning Conference set for 4/4/2016 03:00 PM in Courtroom C204 before Magistrate Judge Nina Y. Wang. (nmarb, ) (Entered: 03/01/2016) |
| 03/10/2016 | <a href="#">17</a> | <i>FIRST AMENDED ANSWER</i> to <a href="#">11</a> Amended Complaint , First COUNTERCLAIM against All Plaintiffs by Von Honnecke.(Terrell, Scott) (Entered: 03/10/2016)                                                                                                                                                                                                               |
| 03/22/2016 | <a href="#">19</a> | CONSENT/NON-CONSENT form to Jurisdiction of Magistrate Judge by Plaintiffs Steven Lee Brandt, James Clay Walters. All parties do not consent.. (Attachments: # <a href="#">1</a> Envelope)(nmarb, ) (Entered: 03/24/2016)                                                                                                                                                            |
| 03/23/2016 | <a href="#">18</a> | CERTIFICATE OF COMPLIANCE <i>Rule 26(a)(1)</i> by Counter Claimants Chase Honnecke, Von Honnecke, Von Honnecke, S&H Heating, A/C, Sheetmetal Co., Defendant Von Honnecke. (Terrell, Scott) (Entered: 03/23/2016)                                                                                                                                                                     |
| 03/25/2016 | 20                 | CASE REASSIGNED pursuant to <a href="#">19</a> Consent to Jurisdiction of Magistrate Judge. All parties do not consent. This case is reassigned to Judge Raymond P. Moore. All future pleadings should be designated as 15-cv-02785-RM. (Text Only Entry) (nmarb, ) (Entered: 03/25/2016)                                                                                            |
| 03/28/2016 | 21                 | ORDER REFERRING CASE to Magistrate Judge Nina Y. Wang. Pursuant to 28 U.S.C. § 636(b)(1)(A) and (B) and Fed. R. Civ. P. 72(a) and (b), this case is referred to the assigned United States Magistrate Judge to (1) convene a scheduling conference under Fed. R. Civ. P. 16(b) and enter a scheduling order meeting the requirements of D.C.COLO.LCivR                               |

|            |                    |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
|------------|--------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|            |                    | 16.2, (2) conduct such status conferences and issue such orders necessary for compliance with the scheduling order, including amendments or modifications of the scheduling order upon a showing of good cause, (3) hear and determine pretrial matters, including discovery and other non-dispositive motions, (4) conduct a pretrial conference and enter a pretrial order, and (5) conduct hearings, including evidentiary hearings, and submit proposed findings of fact and recommendations for rulings on dispositive motions. Court sponsored alternative dispute resolution is governed by D.C.COLO.LCivR 16.6. On the recommendation or informal request of the magistrate judge or on the request of the parties by motion, this court may direct the parties to engage in an early neutral evaluation, a settlement conference, or another alternative dispute resolution proceeding. Entered by Judge Raymond P. Moore on 3/28/2016. (Text Only Entry) (rmsec ) (Entered: 03/28/2016) |
| 03/28/2016 | <a href="#">22</a> | STRICKEN First MOTION to Continue <i>Planning and Scheduling Conference</i> by Counter Claimants Chase Honnecke, Von Honnecke, Von Honnecke, S&H Heating, A/C, Sheetmetal Co., Defendant Von Honnecke. (Terrell, Scott) Modified on 3/30/2016 to STRIKE pursuant to 24 (slibi, ). (Entered: 03/28/2016)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| 03/28/2016 | 23                 | MEMORANDUM regarding <a href="#">22</a> First MOTION to Continue <i>Planning and Scheduling Conference</i> filed by Von Honnecke, S&H Heating, A/C, Sheetmetal Co., Chase Honnecke. Motion referred to Magistrate Judge Nina Y. Wang. Entered by Judge Raymond P. Moore on 3/28/2016. (Text Only Entry) (rmsec ) (Entered: 03/28/2016)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| 03/29/2016 | 24                 | ORDER striking <a href="#">22</a> First Motion to Continue Planning and Scheduling Conference for failure to meet and confer with Plaintiffs. Any re-filed motion must comply with D.C.COLO.LCivR 7.1. By Magistrate Judge Nina Y. Wang on 03/29/2016. Text Only Entry (nywlc2) (Entered: 03/29/2016)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 03/30/2016 | <a href="#">25</a> | NOTICE of Entry of Appearance by Brian D. Smith on behalf of Steven Lee Brandt, James Clay WaltersAttorney Brian D. Smith added to party Steven Lee Brandt(pty:cd), Attorney Brian D. Smith added to party Steven Lee Brandt(pty:pla), Attorney Brian D. Smith added to party Steven Lee Brandt(pty:cd), Attorney Brian D. Smith added to party James Clay Walters(pty:cd), Attorney Brian D. Smith added to party James Clay Walters(pty:cd), Attorney Brian D. Smith added to party James Clay Walters(pty:pla) (Smith, Brian) (Entered: 03/30/2016)                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| 03/31/2016 | <a href="#">26</a> | <i>Plaintiffs'</i> ANSWER/REPLY to <a href="#">17</a> Answer to Amended Complaint, Counterclaim by Steven Lee Brandt, James Clay Walters.(Smith, Brian) (Entered: 03/31/2016)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 04/04/2016 | <a href="#">27</a> | Proposed Scheduling Order by Counter Defendants Steven Lee Brandt, Steven Lee Brandt, James Clay Walters, James Clay Walters, Plaintiffs Steven Lee Brandt, James Clay Walters. (Smith, Brian) (Entered: 04/04/2016)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 04/04/2016 | <a href="#">28</a> | COURTROOM MINUTES/MINUTE ORDER for Scheduling Conference held on 4/4/2016 before Magistrate Judge Nina Y. Wang. Designation of Affirmative Experts due 4/12/2017. Designation of Rebuttal Experts due 5/12/2017. Expert Discovery due 6/12/2017. Fact Discovery due 3/1/2017. Final Infringement Contentions due 6/2/2016. Final Invalidity Contentions due 7/14/2016. Join Parties due 4/18/2016. Joint Disputed Claim Term Chart due 10/20/2016. List of Claim Terms due 9/22/2016. Claim Construction Brief due 11/17/2016. Opinion of Counsel due 1/2/2017. The parties shall submit their proposed pretrial order through PACER, and include a courtesy copy of the proposed order in a Word format sent by email to Wang_Chambers@cod.uscourts.gov, on or before 9/8/2017. Final Pretrial Conference set for 9/15/2017 10:00 AM in Courtroom C204 before Magistrate Judge Nina Y. Wang. FTR: Courtroom C-204. (bsimm, ) (Entered: 04/05/2016)                                               |

|            |                    |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
|------------|--------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 04/04/2016 | <a href="#">29</a> | SCHEDULING ORDER IN A PATENT CASE entered by Magistrate Judge Nina Y. Wang on 4/4/16. (bsimm, ) (Entered: 04/05/2016)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 04/18/2016 | <a href="#">30</a> | STRICKEN: MOTION for Leave to <i>Join Parties and Amend Amended Complaint for Patent Infringement</i> by Counter Defendants Steven Lee Brandt, Steven Lee Brandt, James Clay Walters, James Clay Walters, Plaintiffs Steven Lee Brandt, James Clay Walters. (Attachments: # <a href="#">1</a> Proposed Document Second Amended Complaint, # <a href="#">2</a> Proposed Document Exhibit A, # <a href="#">3</a> Proposed Document Exhibit B, # <a href="#">4</a> Proposed Document Exhibit C, # <a href="#">5</a> Proposed Document Exhibit D)(Smith, Brian) Modified on 4/20/2016 to strike pursuant to 34 Order. (nmarb, ). (Entered: 04/18/2016) |
| 04/19/2016 | 31                 | MEMORANDUM regarding <a href="#">30</a> MOTION for Leave to <i>Join Parties and Amend Amended Complaint for Patent Infringement</i> filed by James Clay Walters, Steven Lee Brandt. Motion referred to Magistrate Judge Nina Y. Wang. Entered by Judge Raymond P. Moore on 4/19/2016. (Text Only Entry) (rmsec ) (Entered: 04/19/2016)                                                                                                                                                                                                                                                                                                             |
| 04/19/2016 | <a href="#">32</a> | Unopposed MOTION for Protective Order <i>Re Confidentiality</i> by Counter Defendants Steven Lee Brandt, Steven Lee Brandt, James Clay Walters, James Clay Walters, Plaintiffs Steven Lee Brandt, James Clay Walters. (Attachments: # <a href="#">1</a> Proposed Order (PDF Only) Protective Order)(Smith, Brian) (Entered: 04/19/2016)                                                                                                                                                                                                                                                                                                            |
| 04/19/2016 | 33                 | MEMORANDUM regarding <a href="#">32</a> Unopposed MOTION for Protective Order <i>Re Confidentiality</i> filed by James Clay Walters, Steven Lee Brandt. Motion referred to Magistrate Judge Nina Y. Wang. Entered by Judge Raymond P. Moore on 4/19/2016. (Text Only Entry) (rmsec ) (Entered: 04/19/2016)                                                                                                                                                                                                                                                                                                                                         |
| 04/19/2016 | 34                 | ORDER striking <a href="#">30</a> Plaintiffs' Motion for Leave to Join Parties and Amend Complaint for Patent Infringement for failure to comply with D.C.COLO.LCivR 7.1(a). A non-specific statement that counsel reached out to opposing counsel but has not yet heard back is insufficient to comply with this rule. By Magistrate Judge Nina Y. Wang on 04/19/2016. Text Only Entry (nywlc2) (Entered: 04/19/2016)                                                                                                                                                                                                                             |
| 04/21/2016 | <a href="#">35</a> | Unopposed MOTION for Leave to <i>Join Parties and Amend Complaint for Patent Infringement</i> by Counter Defendants Steven Lee Brandt, Steven Lee Brandt, James Clay Walters, James Clay Walters, Plaintiffs Steven Lee Brandt, James Clay Walters. (Attachments: # <a href="#">1</a> Exhibit Exhibit)(Smith, Brian) (Entered: 04/21/2016)                                                                                                                                                                                                                                                                                                         |
| 04/21/2016 | 36                 | MEMORANDUM regarding <a href="#">35</a> Unopposed MOTION for Leave to <i>Join Parties and Amend Complaint for Patent Infringement</i> filed by James Clay Walters, Steven Lee Brandt. Motion referred to Magistrate Judge Nina Y. Wang. Entered by Judge Raymond P. Moore on 4/21/2016. (Text Only Entry) (rmsec ) (Entered: 04/21/2016)                                                                                                                                                                                                                                                                                                           |
| 04/22/2016 | <a href="#">38</a> | STIPULATED PROTECTIVE ORDER by Magistrate Judge Nina Y. Wang on 04/22/16. (nmarb, ) (Entered: 04/25/2016)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 04/22/2016 | 39                 | ORDER granting <a href="#">32</a> Motion for Protective Order by Magistrate Judge Nina Y. Wang on 04/22/16, pursuant to <a href="#">38</a> Stipulated Protective Order. Text Only Entry(nmarb, ) (Entered: 04/25/2016)                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 04/25/2016 | 37                 | MINUTE ORDER re: <a href="#">35</a> Unopposed Motion for Leave to Join Parties and Amend Complaint for Patent Infringement. Plaintiffs' counsel represent that they were unable to meet and confer with opposing counsel prior to filing this Motion, despite repeated attempts to do so. Therefore, should Defendant oppose this Motion, Defendant is directed to file any response on or before 05/02/2016. By Magistrate Judge Nina Y. Wang on 04/25/2016. Text Only Entry (nywlc2) (Entered: 04/25/2016)                                                                                                                                       |
| 05/02/2016 | <a href="#">40</a> | RESPONSE to <a href="#">35</a> Unopposed MOTION for Leave to <i>Join Parties and Amend Complaint for Patent Infringement</i> filed by Counter Claimants Chase Honnecke, Von Honnecke.                                                                                                                                                                                                                                                                                                                                                                                                                                                              |



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|            |                    | (Attachments: # <a href="#">1</a> Exhibit Attachment A)(Terrell, Scott) (Entered: 05/02/2016)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| 05/04/2016 | <a href="#">41</a> | MINUTE ORDER granting <a href="#">35</a> Motion to Amend, by Magistrate Judge Nina Y. Wang on 5/04/2016.(slibi, ) (Entered: 05/04/2016)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 05/04/2016 | <a href="#">42</a> | AMENDED COMPLAINT <i>SECOND AMENDED COMPLAINT AND DEMAND FOR JURY TRIAL</i> against Chase Honnecke, Von Honnecke, S&H Heating, A/C, Sheetmetal Co. Attorney Brian D. Smith added to party Colorado Box Company, Inc.(pty:pla), filed by Steven Lee Brandt, James Clay Walters, Colorado Box Company, Inc.. (Attachments: # <a href="#">1</a> Exhibit Exhibit A, # <a href="#">2</a> Exhibit Exhibit B, # <a href="#">3</a> Exhibit Exhibit C, # <a href="#">4</a> Exhibit Exhibit D) (Smith, Brian) (Entered: 05/04/2016)                                                                                                       |
| 05/12/2016 | <a href="#">43</a> | MOTION to Withdraw as Attorney by Counter Defendants Steven Lee Brandt, Steven Lee Brandt, James Clay Walters, James Clay Walters, Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Smith, Brian) (Entered: 05/12/2016)                                                                                                                                                                                                                                                                                                                                                                           |
| 05/13/2016 | 44                 | MEMORANDUM regarding <a href="#">43</a> MOTION to Withdraw as Attorney filed by Colorado Box Company, Inc., James Clay Walters, Steven Lee Brandt. Motion referred to Magistrate Judge Nina Y. Wang. Entered by Judge Raymond P. Moore on 5/13/2016. (Text Only Entry) (rmsec ) (Entered: 05/13/2016)                                                                                                                                                                                                                                                                                                                           |
| 05/13/2016 | 45                 | MINUTE ORDER re: <a href="#">43</a> Motion to Withdraw as Attorney filed by Colorado Box Company, Inc., James Clay Walters, Steven Lee Brandt. A Motion Hearing is set for 5/26/2016 at 03:30 PM in Courtroom C204 before Magistrate Judge Nina Y. Wang. Attorney Brian Smith and each of the Plaintiffs are ordered to appear at this hearing in person. Mr. Smith is directed to serve a copy of this Order on each of his clients. By Magistrate Judge Nina Y. Wang on 05/13/2016. Text Only Entry (nywlc2) (Entered: 05/13/2016)                                                                                            |
| 05/17/2016 | <a href="#">46</a> | <i>Defendant/counterclaim plaintiffs'</i> ANSWER to <a href="#">42</a> Amended Complaint, <i>and</i> , Second COUNTERCLAIM <i>for relief</i> against All Plaintiffs by Von Honnecke, Chase Honnecke. (Terrell, Scott) (Entered: 05/17/2016)                                                                                                                                                                                                                                                                                                                                                                                     |
| 05/26/2016 | <a href="#">47</a> | MINUTE ENTRY for proceedings held before Magistrate Judge Nina Y. Wang: Motions hearing as to Motion <a href="#">43</a> . Court enters order granting <a href="#">43</a> Motion to Withdraw as Attorney. Brian D. Smith is withdrawn as attorney for Plaintiffs. Plaintiff Colorado Box Company, Inc. shall have an attorney of record enter her or his appearance on or before June 17, 2016. If the corporation is unable to comply with that deadline, parties shall motion the court for relief, setting forth a specific basis as to why counsel has not yet been retained. FTR: NYW-C204. (nmarb, ) (Entered: 05/27/2016) |
| 06/15/2016 | <a href="#">48</a> | STRICKEN <del>MOTION for Extension of Time</del> , by Plaintiffs Steven Lee Brandt, James Clay Walters. (nmarb, ) Modified on 6/15/2016 to correct typo. (nmarb, ). Modified on 6/16/2016 to add stricken pursuant to Order 50 (bsimm, ). (Entered: 06/15/2016)                                                                                                                                                                                                                                                                                                                                                                 |
| 06/15/2016 | 49                 | MEMORANDUM regarding <a href="#">48</a> MOTION for Extension of Time to filed by James Clay Walters, Steven Lee Brandt. Motion referred to Magistrate Judge Nina Y. Wang. Entered by Judge Raymond P. Moore on 6/15/2016. (Text Only Entry) (rmsec ) (Entered: 06/15/2016)                                                                                                                                                                                                                                                                                                                                                      |
| 06/16/2016 | 50                 | ORDER striking <a href="#">48</a> Motion for Extension of Time for failure to comply with D.C.COLO.LCivR 7.1(a), which states that before filing a motion, counsel for the moving party or an unrepresented party shall confer or make reasonable good faith efforts to confer with any opposing counsel or unrepresented party to resolve any disputed matter. The moving party shall describe in the motion, or in a certificate attached to the motion, the specific efforts to fulfill this duty. By Magistrate Judge Nina Y. Wang on 06/16/2016. Text Only Entry (nywlc2) (Entered: 06/16/2016)                            |

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| 06/23/2016 | <a href="#">51</a> | NOTICE of Entry of Appearance by Ian Richard Walsworth on behalf of Steven Lee Brandt, Colorado Box Company, Inc., James Clay WaltersAttorney Ian Richard Walsworth added to party Steven Lee Brandt(pty:pla), Attorney Ian Richard Walsworth added to party Colorado Box Company, Inc.(pty:pla), Attorney Ian Richard Walsworth added to party James Clay Walters(pty:pla) (Walsworth, Ian) (Entered: 06/23/2016)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| 06/23/2016 | <a href="#">52</a> | NOTICE of Entry of Appearance by Kendria Elizabeth Pearson on behalf of Steven Lee Brandt, Colorado Box Company, Inc., James Clay WaltersAttorney Kendria Elizabeth Pearson added to party Steven Lee Brandt(pty:pla), Attorney Kendria Elizabeth Pearson added to party Colorado Box Company, Inc.(pty:pla), Attorney Kendria Elizabeth Pearson added to party James Clay Walters(pty:pla) (Pearson, Kendria) (Entered: 06/23/2016)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| 06/23/2016 | <a href="#">53</a> | NOTICE of Entry of Appearance by Patricia Yih-Ting Ho on behalf of Steven Lee Brandt, Colorado Box Company, Inc., James Clay WaltersAttorney Patricia Yih-Ting Ho added to party Steven Lee Brandt(pty:pla), Attorney Patricia Yih-Ting Ho added to party Colorado Box Company, Inc.(pty:pla), Attorney Patricia Yih-Ting Ho added to party James Clay Walters(pty:pla) (Ho, Patricia) (Entered: 06/23/2016)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 06/27/2016 | <a href="#">54</a> | Unopposed MOTION for Leave to <i>Amend Scheduling Order in a Patent Case</i> <a href="#">29</a> Scheduling Order by Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Attachments: # <a href="#">1</a> Exhibit A, # <a href="#">2</a> Proposed Order (PDF Only))(Walsworth, Ian) (Entered: 06/27/2016)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| 06/28/2016 | 55                 | MEMORANDUM regarding <a href="#">54</a> Unopposed MOTION for Leave to <i>Amend Scheduling Order in a Patent Case</i> <a href="#">29</a> Scheduling Order filed by Colorado Box Company, Inc., James Clay Walters, Steven Lee Brandt. Motion referred to Magistrate Judge Nina Y. Wang. Entered by Judge Raymond P. Moore on 6/28/2016. (Text Only Entry) (rmsec ) (Entered: 06/28/2016)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| 06/28/2016 | <a href="#">56</a> | MINUTE ORDER by Magistrate Judge Nina Y. Wang on 6/28/16. Plaintiffs' Unopposed Motion for Leave to Amend Scheduling Order in a Patent Case <a href="#">54</a> is GRANTED. Designation of Affirmative Experts due 6/30/2017. Dispositive Motions due by 10/31/2017. Designation of Rebuttal Experts due 7/31/2017. Expert Discovery due 8/31/2017. Fact Discovery due 4/28/2017. Final Infringement Contentions due 9/1/2016. Final Invalidity Contentions due 10/13/2016. Invalidity Contentions due 9/1/2016. Infringement Contentions due 7/21/2016. Joint Disputed Claim Term Chart due 12/8/2016. List of Claim Terms due 11/10/2016. Opening Claim Construction Brief due 1/13/2017. Opinion of Counsel due 2/27/2017. Proposed Pretrial Order due by 12/12/2017. Final Pretrial Conference set for 12/19/2017 10:00 AM in Courtroom C204 before Magistrate Judge Nina Y. Wang. (bsimm, ) (Entered: 06/29/2016) |
| 07/01/2016 | <a href="#">57</a> | MOTION for Leave to <i>File Third Amended Complaint</i> by Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Attachments: # <a href="#">1</a> Exhibit A - Redline, # <a href="#">2</a> Exhibit B - Clean, # <a href="#">3</a> Exhibit A, # <a href="#">4</a> Exhibit B, # <a href="#">5</a> Exhibit C, # <a href="#">6</a> Exhibit D, # <a href="#">7</a> Exhibit E, # <a href="#">8</a> Exhibit F, # <a href="#">9</a> Exhibit G, # <a href="#">10</a> Proposed Order (PDF Only))(Walsworth, Ian) (Entered: 07/01/2016)                                                                                                                                                                                                                                                                                                                                                                 |
| 07/01/2016 | <a href="#">58</a> | CORPORATE DISCLOSURE STATEMENT. (Walsworth, Ian) (Entered: 07/01/2016)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| 07/05/2016 | 59                 | MEMORANDUM regarding <a href="#">57</a> MOTION for Leave to <i>File Third Amended Complaint</i> filed by Colorado Box Company, Inc., James Clay Walters, Steven Lee Brandt. Motion referred to Magistrate Judge Nina Y. Wang. Entered by Judge Raymond P. Moore on 7/5/2016. (Text Only Entry) (rmsec ) (Entered: 07/05/2016)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 07/22/2016 | <a href="#">60</a> | RESPONSE to <a href="#">57</a> MOTION for Leave to <i>File Third Amended Complaint</i> filed by Defendants Chase Honnecke, Von Honnecke, S&H Sheet Metal, Inc.. (Terrell, Scott) (Entered: 07/22/2016)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |

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| 08/05/2016 | <a href="#">61</a> | REPLY to Response to <a href="#">57</a> MOTION for Leave to <i>File Third Amended Complaint</i> filed by Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Walsworth, Ian) (Entered: 08/05/2016)                                                                                                                                                                                                                                                                                                                                                                                            |
| 09/01/2016 | <a href="#">62</a> | CERTIFICATE OF COMPLIANCE <i>D.C.COLO.LPtR's 6, 8, and 9</i> , by Counter Claimants Chase Honnecke, Von Honnecke, S&H Heating, A/C, Sheetmetal Co.. (Terrell, Scott) (Entered: 09/01/2016)                                                                                                                                                                                                                                                                                                                                                                                                                               |
| 12/08/2016 | <a href="#">63</a> | Joint Disputed Claim Terms Chart - <i>on behalf of Plaintiffs</i> .Claim Construction Brief due 1/13/2017 (Attachments: # <a href="#">1</a> Exhibit A)(Walsworth, Ian) (Entered: 12/08/2016)                                                                                                                                                                                                                                                                                                                                                                                                                             |
| 12/08/2016 | <a href="#">64</a> | SUPPLEMENT/AMENDMENT to <a href="#">63</a> Joint Disputed Claim Terms Chart <i>Addendum B</i> by Counter Claimants Chase Honnecke, Chase Honnecke, Von Honnecke, Von Honnecke, Von Honnecke, S&H Heating, A/C, Sheetmetal Co., Defendant Von Honnecke. (Terrell, Scott) (Entered: 12/08/2016)                                                                                                                                                                                                                                                                                                                            |
| 01/13/2017 | <a href="#">65</a> | Claim Construction Brief <i>Opening by Defendants'/counterclaim Plaintiffs</i> . Responses due by 2/6/2017 (Attachments: # <a href="#">1</a> Exhibit Exhibit 1, # <a href="#">2</a> Exhibit Exhibit 2)(Terrell, Scott) (Entered: 01/13/2017)                                                                                                                                                                                                                                                                                                                                                                             |
| 01/23/2017 | <a href="#">66</a> | RECOMMENDATION OF UNITED STATES MAGISTRATE JUDGE by Magistrate Judge Nina Y. Wang on 1/23/17. This court respectfully RECOMMENDS that Plaintiffs' Motion for Leave to File Third Amended Complaint # <a href="#">57</a> be DENIED. (bwilk, ) (Entered: 01/23/2017)                                                                                                                                                                                                                                                                                                                                                       |
| 02/03/2017 | <a href="#">67</a> | Claim Construction Brief of <a href="#">65</a> Claim Construction Brief - <i>And Response to Defendants' Opening Claim Construction Brief</i> . Responses due by 2/10/2017 (Walsworth, Ian) (Entered: 02/03/2017)                                                                                                                                                                                                                                                                                                                                                                                                        |
| 02/03/2017 | <a href="#">68</a> | DECLARATION of <i>James Clay Walters</i> regarding Claim Construction Brief <a href="#">67</a> by Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Walsworth, Ian) (Entered: 02/03/2017)                                                                                                                                                                                                                                                                                                                                                                                                   |
| 02/03/2017 | <a href="#">69</a> | DECLARATION of <i>Patricia Y. Ho</i> regarding Claim Construction Brief <a href="#">67</a> by Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Attachments: # <a href="#">1</a> Exhibit 1, # <a href="#">2</a> Exhibit 2, # <a href="#">3</a> Exhibit 3, # <a href="#">4</a> Exhibit 4, # <a href="#">5</a> Exhibit 5, # <a href="#">6</a> Exhibit 6, # <a href="#">7</a> Exhibit 7, # <a href="#">8</a> Exhibit 8, # <a href="#">9</a> Exhibit 9, # <a href="#">10</a> Exhibit 10, # <a href="#">11</a> Exhibit 11, # <a href="#">12</a> Exhibit 12) (Ho, Patricia) (Entered: 02/03/2017) |
| 02/08/2017 | <a href="#">70</a> | ORDER that the <a href="#">66</a> Recommendation of United States Magistrate Judge is ADOPTED as an order of this Court; and, <a href="#">57</a> Plaintiffs' Motion for Leave to File Third Amended Complaint is DENIED. ORDERED by Judge Raymond P. Moore on 02/08/2017. (cthom, ) (Entered: 02/08/2017)                                                                                                                                                                                                                                                                                                                |
| 02/10/2017 | <a href="#">71</a> | Joint Motion for Determination by Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Attachments: # <a href="#">1</a> Proposed Order (PDF Only))(Walsworth, Ian) (Entered: 02/10/2017)                                                                                                                                                                                                                                                                                                                                                                                                       |
| 02/10/2017 | <a href="#">72</a> | REPLY Brief in Support of <a href="#">65</a> Claim Construction Brief filed by Counter Claimant S&H Heating, A/C, Sheetmetal Co.. (Terrell, Scott) (Entered: 02/10/2017)                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| 02/13/2017 | <a href="#">73</a> | ORDER granting <a href="#">71</a> Joint Motion for Determination. Markman Hearing set for 4/14/2017 at 01:00 PM in Courtroom A 601 before Judge Raymond P. Moore on the sixth floor of the Alfred A. Arraj United States Courthouse located at 901 19th Street, Denver, Colorado. SO ORDERED by Judge Raymond P. Moore on 2/13/2017. (Text Only Entry ) (rmsec ) (Entered: 02/13/2017)                                                                                                                                                                                                                                   |
| 03/31/2017 | <a href="#">74</a> | <b>STRICKEN</b> First MOTION for Summary Judgment by Defendant S&H Sheet Metal, Inc.. (Terrell, Scott) Modified on 3/31/2017 to add text (cpear). (Entered: 03/31/2017)                                                                                                                                                                                                                                                                                                                                                                                                                                                  |



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| 03/31/2017 | <a href="#">75</a> | Exhibits in Support of <a href="#">74</a> First MOTION for Summary Judgment <i>Attach. 1</i> by Defendant S&H Sheet Metal, Inc.. (Terrell, Scott) (Entered: 03/31/2017)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 03/31/2017 | <a href="#">76</a> | Exhibits in Support of <a href="#">74</a> First MOTION for Summary Judgment <i>Attach. 2</i> by Defendant S&H Sheet Metal, Inc.. (Terrell, Scott) (Entered: 03/31/2017)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 03/31/2017 | <a href="#">77</a> | Exhibits in Support of <a href="#">74</a> First MOTION for Summary Judgment <i>Attach. 3, 1-3</i> by Defendant S&H Sheet Metal, Inc.. (Terrell, Scott) (Entered: 03/31/2017)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 03/31/2017 | <a href="#">78</a> | Exhibits in Support of <a href="#">74</a> First MOTION for Summary Judgment <i>Attach 3. 4</i> by Defendant S&H Sheet Metal, Inc.. (Terrell, Scott) (Entered: 03/31/2017)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| 03/31/2017 | <a href="#">79</a> | Exhibits in Support of <a href="#">74</a> First MOTION for Summary Judgment <i>Attach 3. 5</i> by Defendant S&H Sheet Metal, Inc.. (Terrell, Scott) (Entered: 03/31/2017)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| 03/31/2017 | <a href="#">80</a> | Exhibits in Support of <a href="#">74</a> First MOTION for Summary Judgment <i>Attach. 3. 6</i> by Defendant S&H Sheet Metal, Inc.. (Terrell, Scott) (Entered: 03/31/2017)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| 03/31/2017 | <a href="#">81</a> | Exhibits in Support of <a href="#">74</a> First MOTION for Summary Judgment <i>Attach. 3. 7</i> by Defendant S&H Sheet Metal, Inc.. (Terrell, Scott) (Entered: 03/31/2017)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| 03/31/2017 | <a href="#">82</a> | Exhibits in Support of <a href="#">74</a> First MOTION for Summary Judgment <i>Attach. 4</i> by Defendant S&H Sheet Metal, Inc.. (Terrell, Scott) (Entered: 03/31/2017)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 03/31/2017 | <a href="#">83</a> | ORDER: This matter is before the Court sua sponte upon consideration that the Motion <a href="#">74</a> fails to be supported by a Statement of Undisputed Material Facts ("Statement") as required under Judge Raymond P. Moore's Civil Practice Standards. See Civil Practice Standard IV.B.2 and Exhibit 1 thereto. In addition, the undisputed material facts asserted by a party and relied on in its Motion (or response or reply, as the case may be) should be supported by the Statement, rather than by reference to any particular exhibit. For example, instead of referring to the "Matuszewski, Dep.," the Motion should refer to one or more of the facts set forth in Defendant's Statement, e.g., SUMF #3. Accordingly, the Motion <a href="#">74</a> is hereby STRICKEN with leave to refile on or before Tuesday, April 4, 2017. SO ORDERED by Judge Raymond P. Moore on 3/31/2017. Text Only Entry (cpear) (Entered: 03/31/2017) |
| 04/04/2017 | <a href="#">84</a> | First MOTION for Summary Judgment <i>Amended</i> by Defendant S&H Sheet Metal, Inc.. (Terrell, Scott) (Entered: 04/04/2017)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 04/04/2017 | <a href="#">85</a> | Exhibits in Support of <a href="#">84</a> First MOTION for Summary Judgment <i>Amended Attach. 1, SUMF Table</i> by Defendant S&H Sheet Metal, Inc.. (Attachments: # <a href="#">1</a> Exhibit Attach. 1, SUMF)(Terrell, Scott) (Entered: 04/04/2017)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| 04/04/2017 | <a href="#">86</a> | Exhibits in Support of <a href="#">84</a> First MOTION for Summary Judgment <i>Amended Attach. 2, '323 Appl.</i> by Defendant S&H Sheet Metal, Inc.. (Attachments: # <a href="#">1</a> Exhibit Attach. 2, '323 Appl.)(Terrell, Scott) (Entered: 04/04/2017)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 04/04/2017 | <a href="#">87</a> | Exhibits in Support of <a href="#">86</a> Exhibits <i>Attach. 2.1, Specimen 1</i> by Defendant S&H Sheet Metal, Inc.. (Attachments: # <a href="#">1</a> Exhibit Attach. 2.1)(Terrell, Scott) (Entered: 04/04/2017)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| 04/04/2017 | <a href="#">88</a> | Exhibits in Support of <a href="#">84</a> First MOTION for Summary Judgment <i>Amended Attach. 3, Rsp. OA '323 Appl.</i> by Defendant S&H Sheet Metal, Inc.. (Attachments: # <a href="#">1</a> Exhibit Attach. 3)(Terrell, Scott) (Entered: 04/04/2017)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 04/04/2017 | <a href="#">89</a> | Exhibits in Support of <a href="#">88</a> Exhibits <i>Attach. 3.1, Specimen 2</i> by Defendant S&H Sheet Metal, Inc.. (Attachments: # <a href="#">1</a> Exhibit Attach. 3.1)(Terrell, Scott) (Entered: 04/04/2017)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| 04/04/2017 | <a href="#">90</a> | Exhibits in Support of <a href="#">88</a> Exhibits <i>Attach. 3.2, Specimen 3</i> by Defendant S&H Sheet Metal, Inc.. (Attachments: # <a href="#">1</a> Exhibit Attach. 3.2)(Terrell, Scott) (Entered: 04/04/2017)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |

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| 04/04/2017 | <a href="#">91</a>  | Exhibits in Support of <a href="#">84</a> First MOTION for Summary Judgment <i>Amended Attach. 4, Matuszewski Dep.</i> by Defendant S&H Sheet Metal, Inc.. (Attachments: # <a href="#">1</a> Exhibit Attach. 4)(Terrell, Scott) (Entered: 04/04/2017)                                                                                                                                                                                                                                                                                 |
| 04/06/2017 | <a href="#">92</a>  | MINUTE ORDER: This matter comes before the Court sua sponte. Due to an unforeseen conflict in the Court's calendar, the Markman Hearing currently set for 4/14/2017 at 1:00 PM is VACATED and RESCHEDULED to 4/17/2017 at 10:00 AM in Courtroom A-601, on the sixth floor of the Alfred A. Arraj United States Courthouse located at 901 19th Street, Denver, Colorado. SO ORDERED by Judge Raymond P. Moore on 4/6/2017. (Text Only Entry) (rmsec ) (Entered: 04/06/2017)                                                            |
| 04/13/2017 | <a href="#">93</a>  | Exhibit List <i>Claim Construction Hearing</i> by Defendants Chase Honnecke, Von Honnecke, S&H Heating, A/C, Sheetmetal Co., S&H Sheet Metal, Inc.. (Terrell, Scott) (Entered: 04/13/2017)                                                                                                                                                                                                                                                                                                                                            |
| 04/13/2017 | <a href="#">94</a>  | Witness List <i>Claim Construction Hearing</i> by Defendants Chase Honnecke, Von Honnecke, S&H Heating, A/C, Sheetmetal Co., S&H Sheet Metal, Inc.. (Terrell, Scott) (Entered: 04/13/2017)                                                                                                                                                                                                                                                                                                                                            |
| 04/13/2017 | <a href="#">95</a>  | Witness List by Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters, Counter Defendants Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Walsworth, Ian) (Entered: 04/13/2017)                                                                                                                                                                                                                                                                                                            |
| 04/13/2017 | <a href="#">96</a>  | CERTIFICATE of Mailing/Service re <a href="#">95</a> Witness List by Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters, Counter Defendants Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Walsworth, Ian) (Entered: 04/13/2017)                                                                                                                                                                                                                                                       |
| 04/13/2017 | <a href="#">97</a>  | Exhibit List by Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters, Counter Defendants Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Attachments: # <a href="#">1</a> Exhibit A)(Walsworth, Ian) (Entered: 04/13/2017)                                                                                                                                                                                                                                                                |
| 04/17/2017 | <a href="#">98</a>  | COURTROOM MINUTES for proceedings held before Judge Raymond P. Moore: Markman Hearing held on 4/17/2017. Court Reporter: Tammy Hoffschmidt. (cpear) (Entered: 04/17/2017)                                                                                                                                                                                                                                                                                                                                                             |
| 04/17/2017 | <a href="#">99</a>  | AMENDED COURTROOM MINUTES for proceedings held before Judge Raymond P. Moore: Docket entry <a href="#">98</a> Courtroom Minutes re: Markman Hearing is amended to include that counsel may file further briefing on the issues within ten (10) days of this date. Court Reporter: Tammy Hoffschmidt. (cpear) (Entered: 04/18/2017)                                                                                                                                                                                                    |
| 04/25/2017 | <a href="#">100</a> | BRIEF in Opposition to <a href="#">84</a> First MOTION for Summary Judgment <i>Amended</i> filed by Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters, Counter Defendants Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Attachments: # <a href="#">1</a> Exhibit 1)(Walsworth, Ian) (Entered: 04/25/2017)                                                                                                                                                                            |
| 04/25/2017 | <a href="#">101</a> | DECLARATION of <i>STEVEN BRANDT</i> regarding Brief in Opposition to Motion, <a href="#">100</a> by Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters, Counter Defendants Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Walsworth, Ian) (Entered: 04/25/2017)                                                                                                                                                                                                                        |
| 04/25/2017 | <a href="#">102</a> | DECLARATION of <i>IAN R. WALSWORTH</i> regarding Brief in Opposition to Motion, <a href="#">100</a> by Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters, Counter Defendants Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Attachments: # <a href="#">1</a> Exhibit 1, # <a href="#">2</a> Exhibit 2 [restricted], # <a href="#">3</a> Exhibit 3, # <a href="#">4</a> Exhibit 4, # <a href="#">5</a> Exhibit 5, # <a href="#">6</a> Exhibit 6)(Walsworth, Ian) (Entered: 04/25/2017) |

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| 04/25/2017 | <a href="#">103</a> | Unopposed MOTION for Leave to Restrict by Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters, Counter Defendants Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Attachments: # <a href="#">1</a> Proposed Order (PDF Only))(Walsworth, Ian) (Entered: 04/25/2017)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 04/25/2017 | <a href="#">104</a> | (RESTRICTED DOCUMENT - Level 1) Exhibit 2 re <a href="#">102</a> Declaration by Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters, Counter Defendants Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters.. (Attachments: # <a href="#">1</a> Exhibit 2)(Walsworth, Ian) Modified to add title on 4/26/2017 (cthom, ). (Entered: 04/25/2017)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 04/27/2017 | <a href="#">105</a> | SUPPLEMENT/AMENDMENT to <a href="#">99</a> Amended Minute Entry, <a href="#">67</a> Claim Construction Brief <i>PLAINTIFFS' SUPPLEMENTAL BRIEF ON ISSUES ADDRESSED AT CLAIM CONSTRUCTION HEARING</i> by Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters, Counter Defendants Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Walsworth, Ian) (Entered: 04/27/2017)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| 04/28/2017 | <a href="#">106</a> | Unopposed MOTION for Leave to <i>Amend Scheduling Order</i> <a href="#">56</a> Order on Motion for Leave,,, by Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters, Counter Defendants Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Attachments: # <a href="#">1</a> Proposed Order (PDF Only))(Walsworth, Ian) (Entered: 04/28/2017)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 04/28/2017 | <a href="#">107</a> | BRIEF re <a href="#">65</a> Claim Construction Brief of <i>Supplemental Authority</i> by Counter Claimant S&H Heating, A/C, Sheetmetal Co.. (Terrell, Scott) (Entered: 04/28/2017)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| 04/28/2017 | 108                 | MEMORANDUM regarding <a href="#">106</a> Unopposed MOTION for Leave to <i>Amend Scheduling Order</i> <a href="#">56</a> Order on Motion for Leave,,, filed by Colorado Box Company, Inc., James Clay Walters, Steven Lee Brandt. Motion referred to Magistrate Judge Nina Y. Wang. Entered by Judge Raymond P. Moore on 4/28/2017. (Text Only Entry) (rmsec ) (Entered: 04/28/2017)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| 04/28/2017 | 109                 | ORDER granting in part and denying in part <a href="#">106</a> Unopposed Motion for Leave to Amend Scheduling Order. The following deadlines are extended sixty (60) days: (1) Designation of Affirmative Experts due 8/29/2017; (2) Designation of Rebuttal Experts due 9/29/2017; (3) Expert Discovery due 10/30/2017; (4) 702 Motions due 11/28/2017; (5) Dispositive Motions due by 12/29/2017; (6) Proposed Pretrial Order due by 2/9/2018; and (7) the Final Pretrial Conference is RE-SET for 2/16/2018 10:00 AM in Courtroom C204 before Magistrate Judge Nina Y. Wang. Furthermore, counsel are reminded that all motions for an extension of time shall comply with D.C.COLO.LCivR 6.1(c), as future noncompliance may result in this court striking the motion without substantive consideration. By Magistrate Judge Nina Y. Wang on 4/28/2017. Text Only Entry (nywlc2, ) (Entered: 04/28/2017)                                                                                                                                                                                              |
| 05/01/2017 | 110                 | ORDER: Upon consideration of Plaintiffs' Unopposed Motion for Leave to Restrict Access ("Motion") <a href="#">103</a> to a purchase order, and the applicable rule and case law, and being otherwise fully advised, the Motion <a href="#">103</a> is GRANTED in part. Local Rule 7.2 provides that certain requirements must be met before restriction to public access of documents filed with the court may be had. Here, Plaintiffs assert in a conclusory fashion that the purchase order from one of Colorado Box's customers contains confidential information. Plaintiffs fail to specify what information contained in the purchase order is confidential; the Court finds the majority of the information is not. Instead, at most, the identity of the customer and the pricing are confidential. Moreover, the Court finds this information may be redacted. Accordingly, on or before Wednesday, May 3, 2017, Plaintiffs shall refile ECF No. 104-1, redacted of the customer's information and of Plaintiff's pricing, for public access. The unredacted copy of the purchase order [104-1] |

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|            |                     | shall remain restricted at Level 1. ECF No. 104, however, may be unrestricted.SO ORDERED by Judge Raymond P. Moore on 5/1/2017. (Text Only Entry ) (rmsec ) (Entered: 05/01/2017)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| 05/02/2017 | <a href="#">111</a> | Exhibits in Support of <a href="#">102</a> Declaration, <i>REDACTED Exhibit 2 to Walsworth Declaration</i> by Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters, Counter Defendants Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Attachments: # <a href="#">1</a> Exhibit 2 - Redacted)(Walsworth, Ian) (Entered: 05/02/2017)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| 05/09/2017 | <a href="#">112</a> | REPLY to Response to <a href="#">84</a> First MOTION for Summary Judgment <i>Amended</i> filed by Defendant S&H Heating, A/C, Sheetmetal Co.. (Attachments: # <a href="#">1</a> Exhibit Completed Table)(Terrell, Scott) (Entered: 05/09/2017)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 06/06/2017 | <a href="#">113</a> | NOTICE of Change of Address/Contact Information by Ian Richard Walsworth (Walsworth, Ian) (Entered: 06/06/2017)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| 08/31/2017 | <a href="#">114</a> | NOTICE of Entry of Appearance by Alyssa Kaye Sandrowitz on behalf of Steven Lee Brandt(an individual), Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters, James Clay WaltersAttorney Alyssa Kaye Sandrowitz added to party Steven Lee Brandt(pty:cd), Attorney Alyssa Kaye Sandrowitz added to party Steven Lee Brandt(pty:pla), Attorney Alyssa Kaye Sandrowitz added to party Steven Lee Brandt(pty:cd), Attorney Alyssa Kaye Sandrowitz added to party Steven Lee Brandt(pty:cd), Attorney Alyssa Kaye Sandrowitz added to party Colorado Box Company, Inc.(pty:cd), Attorney Alyssa Kaye Sandrowitz added to party Colorado Box Company, Inc.(pty:pla), Attorney Alyssa Kaye Sandrowitz added to party James Clay Walters(pty:cd), Attorney Alyssa Kaye Sandrowitz added to party James Clay Walters(pty:cd), Attorney Alyssa Kaye Sandrowitz added to party James Clay Walters(pty:pla), Attorney Alyssa Kaye Sandrowitz added to party James Clay Walters(pty:cd) (Sandrowitz, Alyssa) (Entered: 08/31/2017) |
| 08/31/2017 | <a href="#">115</a> | NOTICE of Entry of Appearance by William Warren Mauke on behalf of Steven Lee Brandt(an individual), Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters, James Clay WaltersAttorney William Warren Mauke added to party Steven Lee Brandt(pty:cd), Attorney William Warren Mauke added to party Steven Lee Brandt(pty:pla), Attorney William Warren Mauke added to party Steven Lee Brandt(pty:cd), Attorney William Warren Mauke added to party Steven Lee Brandt(pty:cd), Attorney William Warren Mauke added to party Colorado Box Company, Inc.(pty:cd), Attorney William Warren Mauke added to party Colorado Box Company, Inc.(pty:pla), Attorney William Warren Mauke added to party James Clay Walters(pty:cd), Attorney William Warren Mauke added to party James Clay Walters(pty:cd), Attorney William Warren Mauke added to party James Clay Walters(pty:pla), Attorney William Warren Mauke added to party James Clay Walters(pty:cd) (Mauke, William) (Entered: 08/31/2017)                           |
| 09/06/2017 | <a href="#">116</a> | MOTION to Withdraw as Attorney - <i>Patricia Y. Ho</i> by Counter Defendants Steven Lee Brandt, Steven Lee Brandt, Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters, James Clay Walters, James Clay Walters, Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Attachments: # <a href="#">1</a> Proposed Order (PDF Only)) (Ho, Patricia) (Entered: 09/06/2017)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 09/06/2017 | <a href="#">117</a> | MOTION to Withdraw as Attorney - <i>Kendria E. Pearson</i> by Counter Defendants Steven Lee Brandt, Steven Lee Brandt, Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters, James Clay Walters, James Clay Walters, Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Attachments: # <a href="#">1</a> Proposed Order (PDF Only))(Pearson, Kendria) (Entered: 09/06/2017)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |



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| 09/06/2017 | <a href="#">118</a> | MEMORANDUM regarding <a href="#">116</a> MOTION to Withdraw as Attorney - <i>Patricia Y. Ho</i> filed by Colorado Box Company, Inc., James Clay Walters, Steven Lee Brandt, <a href="#">117</a> MOTION to Withdraw as Attorney - <i>Kendria E. Pearson</i> filed by Colorado Box Company, Inc., James Clay Walters, Steven Lee Brandt. Motions referred to Magistrate Judge Nina Y. Wang. Entered by Judge Raymond P. Moore on 9/6/2017. (Text Only Entry) (rmsec ) (Entered: 09/06/2017)                                                                                                                                                                                                                             |
| 09/06/2017 | <a href="#">119</a> | ORDER granting <a href="#">116</a> Motion to Withdraw as Attorney and <a href="#">117</a> Motion to Withdraw as Attorney. Attorneys Patricia Y. Ho and Kendria E. Pearson are granted leave to withdraw from their representation of Plaintiffs and will be removed from electronic service in this matter. Counsel are reminded that D.C.COLO.LAttyR 5 requires that the withdrawing attorney(s) state the reasons for withdrawal, unless the reasons would violate the rules of professional conduct. By Magistrate Judge Nina Y. Wang on 9/6/2017. Text Only Entry (nywlc2, ) (Entered: 09/06/2017)                                                                                                                |
| 10/25/2017 | <a href="#">120</a> | First MOTION for Protective Order <i>Re: second deposition of Von Honnecke</i> by Counter Claimant Von Honnecke. (Terrell, Scott) (Entered: 10/25/2017)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| 10/26/2017 | <a href="#">121</a> | MEMORANDUM regarding <a href="#">120</a> First MOTION for Protective Order <i>Re: second deposition of Von Honnecke</i> filed by Von Honnecke. Motion referred to Magistrate Judge Nina Y. Wang. Entered by Judge Raymond P. Moore on 10/26/2017. (Text Only Entry) (rmsec ) (Entered: 10/26/2017)                                                                                                                                                                                                                                                                                                                                                                                                                    |
| 11/15/2017 | <a href="#">122</a> | RESPONSE to <a href="#">120</a> First MOTION for Protective Order <i>Re: second deposition of Von Honnecke</i> Attorney Ian Richard Walsworth added to party Steven Lee Brandt(pty:cd), Attorney Ian Richard Walsworth added to party Steven Lee Brandt(pty:cd) filed by Counter Defendants Steven Lee Brandt, Steven Lee Brandt, Steven Lee Brandt, Colorado Box Company, Inc., Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc.. (Attachments: # <a href="#">1</a> Affidavit Declaration of Ian Walsworth, # <a href="#">2</a> Exhibit 1, # <a href="#">3</a> Exhibit 2, # <a href="#">4</a> Exhibit 3, # <a href="#">5</a> Exhibit 4, # <a href="#">6</a> Exhibit 5)(Walsworth, Ian) (Entered: 11/15/2017) |
| 11/24/2017 | <a href="#">123</a> | First MOTION to Exclude <i>Plaintiffs' Suppl. Infring. Contentions.</i> by Counter Claimant Chase Honnecke. (Attachments: # <a href="#">1</a> Exhibit Ex A, # <a href="#">2</a> Exhibit EX B)(Terrell, Scott) (Entered: 11/24/2017)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| 11/28/2017 | <a href="#">124</a> | MOTION to Exclude <i>Motion to Exclude Opinion Testimony of Mr. J. Gregory Whitehair</i> by Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Attachments: # <a href="#">1</a> Exhibit Declaration of Ian R. Walsworth in Support of Motion to Exclude, # <a href="#">2</a> Exhibit Exhibit 1 to Declaration, # <a href="#">3</a> Exhibit Exhibit 2 to Declaration) (Walsworth, Ian) (Entered: 11/28/2017)                                                                                                                                                                                                                                                                               |
| 11/28/2017 | <a href="#">125</a> | MOTION to Exclude <i>Motion to Exclude Opinions of Messrs. Honnecke and Gardner</i> by Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Attachments: # <a href="#">1</a> Exhibit Declaration of Ian R. Walsworth in Support of Motion to Exclude, # <a href="#">2</a> Exhibit Exhibit 1 to Declaration, # <a href="#">3</a> Exhibit Exhibit 2 to Declaration, # <a href="#">4</a> Exhibit Exhibit 3 to Declaration)(Walsworth, Ian) (Entered: 11/28/2017)                                                                                                                                                                                                                               |
| 11/29/2017 | <a href="#">126</a> | REPLY to Response to <a href="#">120</a> First MOTION for Protective Order <i>Re: second deposition of Von Honnecke</i> filed by Counter Claimant Von Honnecke. (Attachments: # <a href="#">1</a> Exhibit A, # <a href="#">2</a> Exhibit B)(Terrell, Scott) (Entered: 11/29/2017)                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 11/30/2017 | <a href="#">127</a> | MOTION to Exclude <i>Mr. Mark Pedigo</i> by Counter Claimant S&H Heating, A/C, Sheetmetal Co.. (Attachments: # <a href="#">1</a> Exhibit A)(Terrell, Scott) (Entered: 11/30/2017)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |

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| 11/30/2017 | <a href="#">128</a> | EXHIBITS to <a href="#">127</a> Motion to Exclude <i>Mr. Pedigo 702</i> by Counter Claimant S&H Heating, A/C, Sheetmetal Co.. (Attachments: # <a href="#">1</a> Deposition Excerpts Ex B, # <a href="#">2</a> Deposition Excerpts Ex C)(Terrell, Scott) Modified to correct title on 12/5/2017 (cthom, ). (Entered: 11/30/2017)                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| 12/04/2017 | <a href="#">129</a> | First MOTION for Extension of Time to <i>file Defendants 702 Motion to Exclude the Tesitmony of Mr. Mark Pedigo 127</i> by Counter Claimant S&H Heating, A/C, Sheetmetal Co.. (Terrell, Scott) (Entered: 12/04/2017)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 12/05/2017 | 130                 | ORDER: Upon consideration of Defendants' Motion <a href="#">129</a> , Plaintiffs shall file any response by Friday, December 8, 2017. SO ORDERED by Judge Raymond P. Moore on 12/5/2017. (Text Only Entry ) (rmsec ) (Entered: 12/05/2017)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| 12/08/2017 | <a href="#">131</a> | RESPONSE to <a href="#">128</a> MOTION to Exclude <i>Mr. Pedigo 702</i> , <a href="#">129</a> First MOTION for Extension of Time to <i>file Defendants 702 Motion to Exclude the Tesitmony of Mr. Mark Pedigo 127</i> , <a href="#">127</a> MOTION to Exclude <i>Mr. Mark Pedigo</i> filed by Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Attachments: # <a href="#">1</a> Exhibit Declaration of Ian R. Walsworth in Support of Plaintiffs' Response to Defendant/Counterclaim Plaintiffs' Motion for Extension of Time to File 702 Motion to Exclude the Testimony of Mr. Mark Pedigo, # <a href="#">2</a> Exhibit Exhibit 1 to Declaration, # <a href="#">3</a> Exhibit Exhibit 2 to Declaration)(Walsworth, Ian) (Entered: 12/08/2017) |
| 12/11/2017 | 132                 | MEMORANDUM regarding <a href="#">129</a> First MOTION for Extension of Time to <i>file Defendants 702 Motion to Exclude the Tesitmony of Mr. Mark Pedigo 127</i> filed by S&H Heating, A/C, Sheetmetal Co.. Motion referred to Magistrate Judge Nina Y. Wang. Entered by Judge Raymond P. Moore on 12/11/2017. (Text Only Entry) (rmsec ) (Entered: 12/11/2017)                                                                                                                                                                                                                                                                                                                                                                                                               |
| 12/12/2017 | <a href="#">133</a> | REPLY to Response to <a href="#">129</a> First MOTION for Extension of Time to <i>file Defendants 702 Motion to Exclude the Tesitmony of Mr. Mark Pedigo 127</i> filed by Counter Claimant S&H Heating, A/C, Sheetmetal Co.. (Terrell, Scott) (Entered: 12/12/2017)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| 12/15/2017 | <a href="#">134</a> | RESPONSE to <a href="#">123</a> First MOTION to Exclude <i>Plaintiffs' Suppl. Infring. Contentions.</i> filed by Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Attachments: # <a href="#">1</a> Exhibit Declaration of Ian R. Walsworth in Support of Plaintiffs' Response to Defendants' Objection/Motion to Exclude/Strike Plaintiffs' Supplemental Infringement Contentions, # <a href="#">2</a> Exhibit 1 to Declaration, # <a href="#">3</a> Exhibit 2 to Declaration) (Walsworth, Ian) (Entered: 12/15/2017)                                                                                                                                                                                                                           |
| 12/19/2017 | <a href="#">135</a> | RESPONSE to <a href="#">124</a> MOTION to Exclude <i>Motion to Exclude Opinion Testimony of Mr. J. Gregory Whitehair</i> filed by Counter Claimant S&H Heating, A/C, Sheetmetal Co.. (Attachments: # <a href="#">1</a> Exhibit A, # <a href="#">2</a> Exhibit B, # <a href="#">3</a> Exhibit C, # <a href="#">4</a> Exhibit D)(Terrell, Scott) (Entered: 12/19/2017)                                                                                                                                                                                                                                                                                                                                                                                                          |
| 12/19/2017 | <a href="#">136</a> | RESPONSE to <a href="#">125</a> MOTION to Exclude <i>Motion to Exclude Opinions of Messrs. Honnecke and Gardner</i> filed by Counter Claimant S&H Heating, A/C, Sheetmetal Co.. (Terrell, Scott) (Entered: 12/19/2017)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| 12/21/2017 | <a href="#">137</a> | ORDER by Magistrate Judge Nina Y. Wang on 12/21/2017. Defendants' Motion for Two-Day Extension of Time <a href="#">129</a> is GRANTED; and Plaintiffs shall FILE a Response to the Motion to Exclude Testimony of Mark Pedigo no later than January 8, 2018. (nywlc2, ) (Entered: 12/21/2017)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| 12/28/2017 | <a href="#">138</a> | MOTION for Summary Judgment by Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Attachments: # <a href="#">1</a> Exhibit Plaintiffs' Statement of Undisputed Material Facts, # <a href="#">2</a> Exhibit Declaration of Ian R. Walsworth in Support of Plaintiffs' Motion for Summary Judgment, # <a href="#">3</a> Exhibit 1 to Declaration, # <a href="#">4</a> Exhibit 2 to Declaration)(Walsworth, Ian) (Entered: 12/28/2017)                                                                                                                                                                                                                                                                                                               |

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| 12/29/2017 | <a href="#">139</a> | REPLY to Response to <a href="#">123</a> First MOTION to Exclude <i>Plaintiffs' Suppl. Infring. Contentions</i> . filed by Counter Claimant S&H Heating, A/C, Sheetmetal Co.. (Attachments: # <a href="#">1</a> Exhibit A)(Terrell, Scott) (Entered: 12/29/2017)                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| 01/02/2018 | <a href="#">140</a> | RESPONSE to <a href="#">124</a> MOTION to Exclude <i>Motion to Exclude Opinion Testimony of Mr. J. Gregory Whitehair Plaintiffs' Reply in Support of Motion to Exclude Opinion Testimony of Mr. Gregory Whitehair</i> filed by Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Walsworth, Ian) (Entered: 01/02/2018)                                                                                                                                                                                                                                                                                                                                                                                         |
| 01/02/2018 | <a href="#">141</a> | RESPONSE to <a href="#">125</a> MOTION to Exclude <i>Motion to Exclude Opinions of Messrs. Honnecke and Gardner Plaintiffs' Reply in Support of Motion to Exclude Opinion Testimony of Messrs. Honnecke and Gardner</i> filed by Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Walsworth, Ian) (Entered: 01/02/2018)                                                                                                                                                                                                                                                                                                                                                                                       |
| 01/05/2018 | 142                 | MINUTE ORDER: Due to an unforeseen conflict with the court's calendar, the Final Pretrial Conference set for 2/16/2018 is VACATED and RESET for 2/20/2018 01:30 PM in Courtroom C204 before Magistrate Judge Nina Y. Wang. The Proposed Pretrial Order is due by 2/13/2018. By Magistrate Judge Nina Y. Wang on 1/5/2018. Text Only Entry (nywlc2, ) (Entered: 01/05/2018)                                                                                                                                                                                                                                                                                                                                                                  |
| 01/08/2018 | <a href="#">143</a> | RESPONSE to <a href="#">127</a> MOTION to Exclude <i>Mr. Mark Pedigo</i> filed by Counter Defendants Steven Lee Brandt, Steven Lee Brandt, Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters, James Clay Walters, James Clay Walters, Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Attachments: # <a href="#">1</a> Exhibit Walsworth Declaration to Response to Rule 702 Motion to Exclude M. Pedigo, # <a href="#">2</a> Exhibit Exhibit 1 to Walsworth Declaration to Response to Rule 702 Motion to Exclude M. Pedigo)(Walsworth, Ian) (Entered: 01/08/2018)                                                                                                                          |
| 01/12/2018 | <a href="#">144</a> | ORDER on Claim Construction by Judge Raymond P. Moore on 1/12/2018. (cthom, ) (Entered: 01/12/2018)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 01/18/2018 | <a href="#">145</a> | RESPONSE to <a href="#">138</a> MOTION for Summary Judgment filed by Defendant S&H Heating, A/C, Sheetmetal Co.. (Attachments: # <a href="#">1</a> Exhibit Table RSUMF, # <a href="#">2</a> Exhibit 1 Amendment, # <a href="#">3</a> Exhibit 2 Interview, # <a href="#">4</a> Exhibit 3 Amendment After Final, # <a href="#">5</a> Exhibit 4 Notice of Allowance, # <a href="#">6</a> Exhibit 5 Walter Dep., # <a href="#">7</a> Exhibit 6 Brandt Markman Testimony)(Terrell, Scott) (Entered: 01/18/2018)                                                                                                                                                                                                                                  |
| 01/22/2018 | <a href="#">146</a> | REPLY to Response to <a href="#">127</a> MOTION to Exclude <i>Mr. Mark Pedigo</i> filed by Defendant S&H Heating, A/C, Sheetmetal Co.. (Terrell, Scott) (Entered: 01/22/2018)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| 01/23/2018 | <a href="#">147</a> | ORDER by Magistrate Judge Nina Y. Wang on 1/23/2018. Defendants' Motion for Protective Order <a href="#">120</a> is DENIED; Plaintiffs are permitted to conduct the deposition of Mr. Von Honnecke in accordance with the directions and limitations identified in this Order; and Plaintiffs' request for costs and fees associated with responding to the instant Motion is DENIED. (nywlc2, ) (Entered: 01/23/2018)                                                                                                                                                                                                                                                                                                                      |
| 02/01/2018 | <a href="#">148</a> | <b>STRICKEN</b> REPLY to Response to <a href="#">138</a> MOTION for Summary Judgment filed by Counter Defendants Steven Lee Brandt, Steven Lee Brandt, Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters, James Clay Walters, James Clay Walters, Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Attachments: # <a href="#">1</a> Affidavit Declaration of Ian R. Walsworth, # <a href="#">2</a> Exhibit 1 to Declaration of Ian R. Walsworth, # <a href="#">3</a> Exhibit 2 to Declaration of Ian R. Walsworth, # <a href="#">4</a> Exhibit 3 to Declaration of Ian R. Walsworth, # <a href="#">5</a> Exhibit 4 to Declaration of Ian R. Walsworth) (Walsworth, Ian) (Entered: 02/01/2018) |
| 02/01/2018 | <a href="#">149</a> | SUPPLEMENT/AMENDMENT to <a href="#">148</a> Reply to Response to Motion,, <i>Statement of Undisputed Material Facts</i> by Counter Defendants Steven Lee Brandt, Steven Lee                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |

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|            |                     | Brandt, Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters, James Clay Walters, James Clay Walters, Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Walsworth, Ian) (Entered: 02/01/2018)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 02/02/2018 | 150                 | MINUTE ORDER: Upon consideration of Plaintiffs' Reply <a href="#">148</a> and finding that it fails to comply with Judge Raymond P. Moore's Civil Practice Standards, the same is <b>STRICKEN</b> with leave to refile on or before <b>Monday, February 5, 2018</b> . Specifically, the Reply fails to reference and rely on the Statement of Undisputed Material Facts, e.g., SUMF ¶ 1. Instead, the Reply refers to specific documents or exhibits, e.g., Walsworth Decl. The parties are reminded that the material facts which they contend are undisputed and upon which they rely should be set forth in the Statement. SO ORDERED by Judge Raymond P. Moore on 2/2/2018. (Text Only Entry) (rmsec ) (Entered: 02/02/2018)                                                            |
| 02/05/2018 | <a href="#">151</a> | REPLY to Response to <a href="#">138</a> MOTION for Summary Judgment filed by Counter Defendants Steven Lee Brandt, Steven Lee Brandt, Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters, James Clay Walters, James Clay Walters, Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Attachments: # <a href="#">1</a> Exhibit 1 - Statement of Undisputed Material Facts, # <a href="#">2</a> Affidavit Declaration of Ian Walsworth, # <a href="#">3</a> Exhibit 1 - to Declaration of Ian Walsworth, # <a href="#">4</a> Exhibit 2 - to Declaration of Ian Walsworth, # <a href="#">5</a> Exhibit 3 - to Declaration of Ian Walsworth, # <a href="#">6</a> Exhibit 4 - to Declaration of Ian Walsworth)(Walsworth, Ian) (Entered: 02/05/2018) |
| 02/13/2018 | <a href="#">152</a> | Proposed Pretrial Order <i>Proposed Final Pretrial Order</i> by Counter Defendants Steven Lee Brandt, Steven Lee Brandt, Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters, James Clay Walters, James Clay Walters, Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Attachments: # <a href="#">1</a> Exhibit Plaintiffs' Exhibit List, # <a href="#">2</a> Exhibit Defendants' Exhibit List)(Walsworth, Ian) (Entered: 02/13/2018)                                                                                                                                                                                                                                                                                                           |
| 02/20/2018 | <a href="#">153</a> | ORDER Setting Case for Trial. 4 day Jury Trial set for 12/10/2018 at 9:00 AM, 08:30 AM first day start, in Courtroom A 601 before Judge Raymond P. Moore. Trial Preparation Conference set for 11/16/2018 at 01:30 PM in Courtroom A 601 before Judge Raymond P. Moore. ORDERED by Judge Raymond P. Moore on 2/20/2018. (cthom, ) (Entered: 02/20/2018)                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 02/20/2018 | <a href="#">154</a> | COURTROOM MINUTES/MINUTE ORDER for Final Pretrial Conference held on 2/20/2018 before Magistrate Judge Nina Y. Wang. Copies of exhibit lists and exhibits shall be supplemented with Bates numbers on or before 3/20/2018. FTR: Courtroom C-204. (bwilk, ) (Entered: 02/21/2018)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| 02/20/2018 | <a href="#">155</a> | FINAL PRETRIAL ORDER entered by Magistrate Judge Nina Y. Wang on 2/20/2018. (Attachments: #(1) Plaintiffs' Exhibit List, #(2) Defendants' Exhibit List) (bwilk, ) (Entered: 02/21/2018)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 03/01/2018 | <a href="#">156</a> | CERTIFICATE OF COMPLIANCE , <i>DC Colo.LPtR 16(b)</i> , by Defendant S&H Heating, A/C, Sheetmetal Co.. (Terrell, Scott) (Entered: 03/01/2018)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| 03/01/2018 | <a href="#">157</a> | MINUTE ORDER by Magistrate Judge Nina Y. Wang on 3/1/2018. A Discovery Conference is set for 3/8/2018 02:00 PM in Courtroom C204 before Magistrate Judge Nina Y. Wang. Counsel shall initiate a phone call between themselves prior to calling Chambers at (303) 335-2600 at the designated time; Counsel shall submit to Chambers any written materials which they wish to discuss at the Discovery Conference; Parties shall complete and submit the written discovery dispute chart... if applicable, and any written materials to Wang_Chambers@cod.uscourts.gov on or before 3/6/2018 at 5:00 p.m. (bwilk, ) (Entered: 03/01/2018)                                                                                                                                                     |
| 03/08/2018 | <a href="#">158</a> | COURTROOM MINUTES/MINUTE ORDER for Discovery Hearing held on 3/8/2018 before Magistrate Judge Nina Y. Wang. If Defendants Objection/Motion to Exclude/Strike Plaintiff's Supplemental Infringement Contentions <a href="#">123</a> is denied, Defendants shall be                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |



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|            |                     | prepared to produce all relevant documents within one week of the ruling....Defendants should supplement their response to Request for Production No. 14 with respect to the first and second generation accused devices with responsive documents not otherwise produced in this matter, no later than March 30, 2018. FTR: Courtroom C-204. (bwilk, ) (Entered: 03/09/2018)                                                                                                                                                                                                                                                                                                                                                |
| 03/15/2018 | <a href="#">159</a> | CERTIFICATE OF COMPLIANCE re <a href="#">158</a> Discovery Hearing,, by Defendant S&H Heating, A/C, Sheetmetal Co.. (Terrell, Scott) (Entered: 03/15/2018)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| 03/20/2018 | <a href="#">160</a> | Exhibits in Support of <a href="#">152</a> Proposed Pretrial Order, <i>Compliance with <a href="#">158</a> Supplemental Defendants' Exhibit List [152-2]</i> by Defendant S&H Heating, A/C, Sheetmetal Co.. (Terrell, Scott) (Entered: 03/20/2018)                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| 03/20/2018 | <a href="#">161</a> | Exhibit List -- <i>First Supplemental</i> -- by Counter Defendants Steven Lee Brandt, Steven Lee Brandt, Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters, James Clay Walters, James Clay Walters, Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Walsworth, Ian) (Entered: 03/20/2018)                                                                                                                                                                                                                                                                                                                                                                                     |
| 04/06/2018 | <a href="#">162</a> | MOTION to Compel by Counter Defendants Steven Lee Brandt, Steven Lee Brandt, Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters, James Clay Walters, James Clay Walters, Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Walsworth, Ian) (Entered: 04/06/2018)                                                                                                                                                                                                                                                                                                                                                                                                                 |
| 04/06/2018 | <a href="#">163</a> | DECLARATION of <i>Ian R. Walsworth</i> regarding MOTION to Compel <a href="#">162</a> by Counter Defendants James Clay Walters, James Clay Walters, James Clay Walters, Plaintiff James Clay Walters. (Attachments: # <a href="#">1</a> Exhibit 1, # <a href="#">2</a> Exhibit 2, # <a href="#">3</a> Exhibit 3, # <a href="#">4</a> Exhibit 4, # <a href="#">5</a> Exhibit 5, # <a href="#">6</a> Exhibit 6, # <a href="#">7</a> Exhibit 7, # <a href="#">8</a> Exhibit 8, # <a href="#">9</a> Exhibit 9, # <a href="#">10</a> Exhibit 10, # <a href="#">11</a> Exhibit 11 [restricted], # <a href="#">12</a> Exhibit 12 [restricted], # <a href="#">13</a> Exhibit 13 [restricted]) (Walsworth, Ian) (Entered: 04/06/2018) |
| 04/06/2018 | <a href="#">164</a> | Unopposed MOTION for Leave to Restrict by Counter Defendants Steven Lee Brandt, Steven Lee Brandt, Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters, James Clay Walters, James Clay Walters, Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Attachments: # <a href="#">1</a> Proposed Order (PDF Only)) (Walsworth, Ian) (Entered: 04/06/2018)                                                                                                                                                                                                                                                                                                                              |
| 04/06/2018 | <a href="#">165</a> | (RESTRICTED DOCUMENT - Level 1) Exhibit 11 re <a href="#">163</a> Declaration by Counter Defendants Steven Lee Brandt, Steven Lee Brandt, Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters, James Clay Walters, James Clay Walters, Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters.. (Attachments: # <a href="#">1</a> Exhibit 11)(Walsworth, Ian) Modified to add title on 4/9/2018 (cthom, ). (Entered: 04/06/2018)                                                                                                                                                                                                                                                         |
| 04/06/2018 | <a href="#">166</a> | (RESTRICTED DOCUMENT - Level 1) Exhibit 12 to <a href="#">163</a> Declaration by Counter Defendants Steven Lee Brandt, Steven Lee Brandt, Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters, James Clay Walters, James Clay Walters, Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters.. (Attachments: # <a href="#">1</a> Exhibit 12)(Walsworth, Ian) Modified to add title on 4/9/2018 (cthom, ). (Entered: 04/06/2018)                                                                                                                                                                                                                                                         |
| 04/06/2018 | <a href="#">167</a> | (RESTRICTED DOCUMENT - Level 1) Exhibit 13 to <a href="#">163</a> Declaration by Counter Defendants Steven Lee Brandt, Steven Lee Brandt, Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters, James Clay Walters, James Clay Walters, Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters.. (Attachments: # <a href="#">1</a> Exhibit 13)(Walsworth, Ian) Modified to add title on 4/9/2018 (cthom, ). (Entered: 04/06/2018)                                                                                                                                                                                                                                                         |

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| 04/09/2018 | 168                 | MEMORANDUM regarding <a href="#">162</a> MOTION to Compel filed by Colorado Box Company, Inc., James Clay Walters, Steven Lee Brandt. Motion referred to Magistrate Judge Nina Y. Wang. Entered by Judge Raymond P. Moore on 4/9/2018. (Text Only Entry) (rmsec ) (Entered: 04/09/2018)                                                                                                                                                                                                                                                                                                                             |
| 04/09/2018 | 169                 | MEMORANDUM regarding <a href="#">164</a> Unopposed MOTION for Leave to Restrict filed by Colorado Box Company, Inc., James Clay Walters, Steven Lee Brandt. Motion referred to Magistrate Judge Nina Y. Wang. Entered by Judge Raymond P. Moore on 4/9/2018. (Text Only Entry) (rmsec ) (Entered: 04/09/2018)                                                                                                                                                                                                                                                                                                       |
| 04/09/2018 | 170                 | MINUTE ORDER re: <a href="#">162</a> MOTION to Compel filed by Colorado Box Company, Inc., James Clay Walters, Steven Lee Brandt. Defendants shall file their Response, if any, on or before <a href="#">4/23/2018</a> . Plaintiffs shall file their Reply, if any, on or before <a href="#">4/30/2018</a> . By Magistrate Judge Nina Y. Wang on 4/9/2018. Text Only Entry (nywlc2, ) (Entered: 04/09/2018)                                                                                                                                                                                                         |
| 04/13/2018 | <a href="#">171</a> | MINUTE ORDER by Magistrate Judge Nina Y. Wang on 4/13/2018. The Motion <a href="#">164</a> is GRANTED IN PART and DENIED IN PART; The Clerk of the Court is DIRECTED to MAINTAIN a Level 1 Restriction for [#165-1]; [#166-1]; and [#167-1]; and The Clerk of the Court is DIRECTED TO UNRESTRICT [# <a href="#">165</a> , # <a href="#">166</a> , # <a href="#">167</a> ]. (bwilk, ) (Entered: 04/13/2018)                                                                                                                                                                                                         |
| 04/23/2018 | <a href="#">172</a> | RESPONSE to <a href="#">162</a> MOTION to Compel <i>Supplemental Response to Request No. 14</i> filed by Defendant S&H Heating, A/C, Sheetmetal Co.. (Attachments: # <a href="#">1</a> Exhibit A)(Terrell, Scott) (Entered: 04/23/2018)                                                                                                                                                                                                                                                                                                                                                                             |
| 04/30/2018 | <a href="#">173</a> | REPLY to Response to <a href="#">162</a> MOTION to Compel filed by Counter Defendants Steven Lee Brandt, Steven Lee Brandt, Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters, James Clay Walters, James Clay Walters, Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Walsworth, Ian) (Entered: 04/30/2018)                                                                                                                                                                                                                                                         |
| 05/22/2018 | <a href="#">174</a> | ORDER ON MOTION TO COMPEL by Magistrate Judge Nina Y. Wang on 5/22/2018. Plaintiffs' Motion to Compel <a href="#">162</a> is GRANTED IN PART and DENIED IN PART;... (nywlc2, ) (Entered: 05/22/2018)                                                                                                                                                                                                                                                                                                                                                                                                                |
| 09/13/2018 | <a href="#">175</a> | Exhibits in Support of <a href="#">145</a> Response to Motion, <i>Replacement Ex. 5_ Att. #6 <a href="#">145</a> Walters Depo.</i> by Defendant S&H Heating, A/C, Sheetmetal Co.. (Terrell, Scott) (Entered: 09/13/2018)                                                                                                                                                                                                                                                                                                                                                                                            |
| 09/14/2018 | <a href="#">176</a> | ORDER denying <a href="#">123</a> Objection/Motion to Exclude/Strike Plaintiffs Supplemental Infringement Contentions. ORDERED by Judge Raymond P. Moore on 9/14/2018. (cthom, ) (Entered: 09/14/2018)                                                                                                                                                                                                                                                                                                                                                                                                              |
| 09/14/2018 | <a href="#">177</a> | ORDER denying <a href="#">84</a> First Motion for Partial Summary Judgment (Invalidity of Claims 1, 3, and 5 of U.S Pat. Ser. No.8,999,029) [Amended]. ORDERED by Judge Raymond P. Moore on 9/14/2018. (cthom, ) (Entered: 09/14/2018)                                                                                                                                                                                                                                                                                                                                                                              |
| 09/19/2018 | <a href="#">178</a> | ORDER the Defendants' affirmative defense and counterclaim based on any allegations of misuse are hereby DISMISSED WITHOUT PREJUDICE; and, the Plaintiff's <a href="#">138</a> Motion for Summary Judgment is DENIED AS MOOT based on Plaintiffs' arguments for summary judgment as to Defendants' affirmative defense and counterclaim based on misuse and GRANTED as to Defendants' affirmative defense and counterclaim based on inequitable conduct and such affirmative defense and counterclaim are DISMISSED WITH PREJUDICE. ORDERED by Judge Raymond P. Moore on 9/19/2018. (cthom, ) (Entered: 09/19/2018) |
| 09/24/2018 | <a href="#">179</a> | AMENDED ORDER SETTING CASE FOR TRIAL 4 day Jury Trial set for 2/11/2019 at 9:00 AM, 08:30 AM first day start, in Courtroom A 601 before Judge Raymond P. Moore.                                                                                                                                                                                                                                                                                                                                                                                                                                                     |

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|            |                     | Trial Preparation Conference set for 1/11/2019 at 01:00 PM in Courtroom A 601 before Judge Raymond P. Moore. ORDERED by Judge Raymond P. Moore on 9/24/2018. (cthom, ) (Entered: 09/24/2018)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| 09/25/2018 | <a href="#">180</a> | ORDER granting Plaintiffs' <a href="#">124</a> Motion to Exclude Opinion Testimony of Mr. J. Gregory Whitehair. ORDERED by Judge Raymond P. Moore on 9/25/2018. (cthom, ) Modified to show <b>ORDER Amended at ecf <a href="#">203</a> Order</b> on 1/16/2019 (cthom, ). (Entered: 09/25/2018)                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 09/28/2018 | <a href="#">181</a> | ORDER granting in part and denying in part <a href="#">125</a> MOTION to Exclude Motion to Exclude Opinions of Messrs. Honnecke and Gardner. ORDERED by Judge Raymond P. Moore on 9/28/2018. (cthom, ) (Entered: 09/28/2018)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| 10/29/2018 | <a href="#">182</a> | ORDER denying <a href="#">127</a> Motion to Exclude Testimony of Mark Pedigo. ORDERED by Judge Raymond P. Moore on 10/29/2018. (cthom, ) (Entered: 10/29/2018)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 12/28/2018 | <a href="#">183</a> | Proposed Jury Instructions by Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Walsworth, Ian) (Entered: 12/28/2018)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 12/28/2018 | <a href="#">184</a> | Proposed Verdict Form by Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Walsworth, Ian) (Entered: 12/28/2018)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| 12/28/2018 | <a href="#">185</a> | Proposed Jury Instructions by Counter Claimant S&H Heating, A/C, Sheetmetal Co.. (Attachments: # <a href="#">1</a> Exhibit Proposed Jury Instructions, # <a href="#">2</a> Exhibit Proposed Verdict Forms)(Terrell, Scott) (Entered: 12/28/2018)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| 01/04/2019 | <a href="#">186</a> | Renewed MOTION to Exclude <i>Opinions of Messrs. Honnecke and Gardner Under Fed. R. Evid. 702 and 701 and Fed. R. Civ. P. 26(a)(2)(C)</i> by Counter Defendants Steven Lee Brandt, Steven Lee Brandt, Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters, James Clay Walters, James Clay Walters, Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Attachments: # <a href="#">1</a> Affidavit Declaration of Alyssa K. Sandrowitz, # <a href="#">2</a> Exhibit 1 to Declaration of Alyssa K. Sandrowitz, # <a href="#">3</a> Exhibit 2 to Declaration of Alyssa K. Sandrowitz, # <a href="#">4</a> Exhibit 3 to Declaration of Alyssa K. Sandrowitz)(Sandrowitz, Alyssa) (Entered: 01/04/2019) |
| 01/04/2019 | <a href="#">187</a> | Unopposed MOTION for Leave to <i>Restrict Exhibit 2 and Exhibit 3</i> <a href="#">186</a> Renewed MOTION to Exclude <i>Opinions of Messrs. Honnecke and Gardner Under Fed. R. Evid. 702 and 701 and Fed. R. Civ. P. 26(a)(2)(C)</i> by Counter Defendants Steven Lee Brandt, Steven Lee Brandt, Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters, James Clay Walters, James Clay Walters, Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Sandrowitz, Alyssa) (Entered: 01/04/2019)                                                                                                                                                                                                         |
| 01/04/2019 | <a href="#">188</a> | (RESTRICTED DOCUMENT - Level 1) Exhibits 2 and 3 re [186] Motion by Counter Defendants Steven Lee Brandt, Steven Lee Brandt, Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters, James Clay Walters, James Clay Walters, Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters.. (Attachments: # <a href="#">1</a> Exhibit 2 to Renewed Motion to Exclude, # <a href="#">2</a> Exhibit 3 to Renewed Motion to Exclude) (Sandrowitz, Alyssa) Modified to add title on 1/4/2019 (cthom, ). Modified to add text on 1/9/2019 (cthom, ). (Entered: 01/04/2019)                                                                                                                                            |
| 01/04/2019 | <a href="#">189</a> | MOTION in Limine by Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Walsworth, Ian) (Entered: 01/04/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| 01/04/2019 | <a href="#">190</a> | Proposed Voir Dire by Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Walsworth, Ian) (Entered: 01/04/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| 01/04/2019 | <a href="#">191</a> | Witness List by Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Walsworth, Ian) (Entered: 01/04/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |

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| 01/04/2019 | <a href="#">192</a> | Exhibit List by Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Walsworth, Ian) (Entered: 01/04/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| 01/04/2019 | <a href="#">193</a> | TRANSCRIPT of Markman Hearing held on April 17, 2017 before Judge Moore. Pages: 1-157. <b>&lt;br&gt; NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at <a href="http://www.cod.uscourts.gov">www.cod.uscourts.gov</a>.</b> Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (thoff, ) (Entered: 01/04/2019) |
| 01/04/2019 | <a href="#">194</a> | Proposed Voir Dire by Defendants Chase Honnecke, Von Honnecke, S&H Heating, A/C, Sheetmetal Co., S&H Sheet Metal, Inc.. (Terrell, Scott) (Entered: 01/04/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 01/04/2019 | <a href="#">195</a> | Witness List by Defendants Chase Honnecke, Von Honnecke, S&H Heating, A/C, Sheetmetal Co., S&H Sheet Metal, Inc.. (Terrell, Scott) (Entered: 01/04/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| 01/04/2019 | <a href="#">196</a> | Exhibit List by Defendants Chase Honnecke, Von Honnecke, S&H Heating, A/C, Sheetmetal Co., S&H Sheet Metal, Inc.. (Terrell, Scott) (Entered: 01/04/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| 01/07/2019 | <a href="#">197</a> | ORDER denying <a href="#">186</a> Renewed MOTION to Exclude Opinions of Messrs. Honnecke and Gardner Under Fed. R. Evid. 702 and 701 and Fed. R. Civ. P. 26(a)(2)(C). ORDERED by Judge Raymond P. Moore on 1/7/2019. (cthom, ) (Entered: 01/07/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| 01/07/2019 | <a href="#">198</a> | ORDER Denying without Prejudice <a href="#">187</a> Unopposed Motion for Leave to Restrict. ORDERED by Judge Raymond P. Moore on 1/7/2019. (cthom, ) (Entered: 01/07/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 01/07/2019 | 199                 | MINUTE ORDER: Upon consideration of the motion in limine <a href="#">189</a> , Defendants may file any response on or before January 21, 2019, and Plaintiffs may thereafter file any reply on or before January 30, 2019. SO ORDERED by Judge Raymond P. Moore on 1/7/2019. (Text Only Entry) (rmsec ) (Entered: 01/07/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| 01/11/2019 | <a href="#">200</a> | COURTROOM MINUTES for proceedings held before Judge Raymond P. Moore: Trial Preparation Conference held on 1/11/2019. Court Reporter: Tammy Hoffschildt. (cpear) (Entered: 01/11/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 01/11/2019 | <a href="#">201</a> | AMENDED COURTROOM MINUTES for proceedings held before Judge Raymond P. Moore: Docket entry <a href="#">200</a> Courtroom Minutes re Trial Preparation Conference is amended as highlighted. Court Reporter: Tammy Hoffschildt. (cpear) (Entered: 01/14/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| 01/14/2019 | 202                 | MINUTE ORDER: By Order dated January 7, 2019, the Court denied Plaintiffs' Unopposed Motion for Leave to Restrict <a href="#">87</a> , without prejudice, with leave to refile on or before January 11, 2019. As no renewed motion to restrict has been filed, and the time to do so has passed, the Clerk is direct to unrestrict ECF Nos. 188-1 and 188-2. SO ORDERED by Judge Raymond P. Moore on 1/14/2019. (Text Only Entry) (rmsec) (Entered: 01/14/2019)                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 01/16/2019 | <a href="#">203</a> | ORDER Amending <a href="#">180</a> Order granting Plaintiffs' <a href="#">124</a> Motion to Exclude Opinion Testimony of Mr. J. Gregory Whitehair. ORDERED by Judge Raymond P. Moore on 1/16/2019. (cthom, ) (Entered: 01/16/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| 01/18/2019 | <a href="#">204</a> | STATEMENT <i>FRCP R45 Subpoena of Plaintiff's Will Call Witness</i> <a href="#">191</a> <i>Tim Brooks To Attend and Testify on 2/11/2019</i> by Defendant S&H Heating, A/C, Sheetmetal Co.. (Attachments: # <a href="#">1</a> Exhibit Tim Brooks Return of Rule 45 Subpoena to Attend Trial on 2/11/19)(Terrell, Scott) (Entered: 01/18/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |



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| 01/21/2019 | <a href="#">205</a> | RESPONSE to <a href="#">189</a> MOTION in Limine filed by Defendant S&H Sheet Metal, Inc.. (Attachments: # <a href="#">1</a> Exhibit, # <a href="#">2</a> Exhibit)(Terrell, Scott) (Entered: 01/21/2019)                                                                                                                                                                                                                                                                                                                      |
| 01/28/2019 | <a href="#">206</a> | Exhibit List <i>Amended</i> by Defendants Chase Honnecke, Von Honnecke, S&H Heating, A/C, Sheetmetal Co., S&H Sheet Metal, Inc.. (Terrell, Scott) (Entered: 01/28/2019)                                                                                                                                                                                                                                                                                                                                                       |
| 01/28/2019 | <a href="#">207</a> | Witness List <i>Updated</i> by Defendants Chase Honnecke, Von Honnecke, S&H Heating, A/C, Sheetmetal Co., S&H Sheet Metal, Inc.. (Terrell, Scott) (Entered: 01/28/2019)                                                                                                                                                                                                                                                                                                                                                       |
| 01/28/2019 | <a href="#">208</a> | OBJECTIONS to <i>Defendants' Trial Witnesses</i> by Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Walsworth, Ian) (Entered: 01/28/2019)                                                                                                                                                                                                                                                                                                                                                      |
| 01/28/2019 | <a href="#">209</a> | OBJECTIONS to <i>Defendants' Trial Exhibits</i> by Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Attachments: # <a href="#">1</a> Exhibit Plaintiffs revised trial exhibit list, # <a href="#">2</a> Exhibit Defendants trial exhibit list)(Walsworth, Ian) (Entered: 01/28/2019)                                                                                                                                                                                                            |
| 01/28/2019 | <a href="#">210</a> | OBJECTIONS to <i>Defendants' Proposed Jury Instructions</i> by Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Walsworth, Ian) (Entered: 01/28/2019)                                                                                                                                                                                                                                                                                                                                           |
| 01/28/2019 | <a href="#">211</a> | OBJECTIONS to <i>Expert report of Mr. Mark Pedigo</i> by Defendant S&H Heating, A/C, Sheetmetal Co.. (Attachments: # <a href="#">1</a> Exhibit Pedigo Rpt. w/o attach.)(Terrell, Scott) (Entered: 01/28/2019)                                                                                                                                                                                                                                                                                                                 |
| 01/28/2019 | <a href="#">212</a> | OBJECTIONS to <i>the retained expert witness report of Mr. Aitken</i> by Defendant S&H Heating, A/C, Sheetmetal Co.. (Attachments: # <a href="#">1</a> Exhibit Suppl. Rpt. Mr. Aitken)(Terrell, Scott) (Entered: 01/28/2019)                                                                                                                                                                                                                                                                                                  |
| 01/30/2019 | <a href="#">213</a> | STATEMENT <i>Rob Burris Subpoena and Waiver of Service</i> by Defendant S&H Heating, A/C, Sheetmetal Co.. (Terrell, Scott) (Entered: 01/30/2019)                                                                                                                                                                                                                                                                                                                                                                              |
| 01/30/2019 | <a href="#">214</a> | STATEMENT <i>Jeff Johnson Subpoena With Waiver of Service</i> by Defendant S&H Heating, A/C, Sheetmetal Co.. (Terrell, Scott) (Entered: 01/30/2019)                                                                                                                                                                                                                                                                                                                                                                           |
| 01/30/2019 | <a href="#">215</a> | REPLY to Response to <a href="#">189</a> MOTION in Limine filed by Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Walsworth, Ian) (Entered: 01/30/2019)                                                                                                                                                                                                                                                                                                                                       |
| 01/31/2019 | <a href="#">216</a> | OBJECTIONS to <a href="#">209</a> Objections, <i>Plaintiffs' Supplemental Objections to Defendants' Trial Exhibits</i> by Counter Defendants Steven Lee Brandt, Steven Lee Brandt, Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters, James Clay Walters, James Clay Walters, Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Attachments: # <a href="#">1</a> Exhibit A)(Walsworth, Ian) (Entered: 01/31/2019)                                                                |
| 01/31/2019 | <a href="#">217</a> | OBJECTIONS to <a href="#">208</a> Objections <i>Plaintiffs' Supplemental Objections to Trial Witnesses</i> by Counter Defendants Steven Lee Brandt, Steven Lee Brandt, Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters, James Clay Walters, James Clay Walters, Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Walsworth, Ian) (Entered: 01/31/2019)                                                                                                                        |
| 02/01/2019 | 218                 | MINUTE ORDER: Upon a review of the recent filings in this case, the Court finds that a status conference is required to address issues raised. Accordingly, it is ORDERED that a status conference is hereby set for Friday February 8, 2019 at 10:00 AM before Judge Raymond P. Moore in Courtroom A 601 on the Sixth Floor of the Alfred A. Arraj United States Courthouse located at 901 19th Street, Denver, Colorado. SO ORDERED by Judge Raymond P. Moore on 2/1/2019. (Text Only Entry) (rmsec ) (Entered: 02/01/2019) |

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| 02/01/2019 | <a href="#">219</a> | Exhibit List <a href="#">206</a> <i>Amended to replace numbers with alphabetical letters</i> by Defendants Chase Honnecke, Von Honnecke, S&H Heating, A/C, Sheetmetal Co., S&H Sheet Metal, Inc.. (Terrell, Scott) (Entered: 02/01/2019)                                                                                                                     |
| 02/01/2019 | <a href="#">220</a> | Exhibit List <i>second amended exhibit list</i> <a href="#">206</a> <i>to conform with REM Pract. Std. III.E.3.a.</i> by Defendants Chase Honnecke, Von Honnecke, S&H Heating, A/C, Sheetmetal Co., S&H Sheet Metal, Inc.. (Terrell, Scott) (Entered: 02/01/2019)                                                                                            |
| 02/06/2019 | <a href="#">221</a> | TRIAL BRIEF <i>filed</i> by Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Attachments: # <a href="#">1</a> Exhibit 1, # <a href="#">2</a> Exhibit 2, # <a href="#">3</a> Exhibit 3, # <a href="#">4</a> Exhibit 4) (Walsworth, Ian) (Entered: 02/06/2019)                                                                   |
| 02/08/2019 | <a href="#">222</a> | COURTROOM MINUTES for proceedings held before Judge Raymond P. Moore: Status Conference held on 2/8/2019. <a href="#">189</a> Motion in Limine is denied. Court Reporter: Tammy Hoffschilt. (cpear) (Entered: 02/08/2019)                                                                                                                                    |
| 02/08/2019 | <a href="#">223</a> | TRIAL BRIEF [ <i>Bench Brief on Liability for Infringement</i> ] by Counter Defendants Steven Lee Brandt, Steven Lee Brandt, Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters, James Clay Walters, James Clay Walters, Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Walsworth, Ian) (Entered: 02/08/2019) |
| 02/11/2019 | <a href="#">224</a> | COURTROOM MINUTES for proceedings held before Judge Raymond P. Moore: Jury Trial - Day 1 held on 2/11/2019. Trial continues. Court Reporter: Tammy Hoffschilt. (cpear) (Entered: 02/12/2019)                                                                                                                                                                 |
| 02/11/2019 | <a href="#">233</a> | Jury List (Strike Sheet) - REDACTED. (cpear) (Entered: 02/19/2019)                                                                                                                                                                                                                                                                                           |
| 02/11/2019 | <a href="#">234</a> | Jury List (Strike sheet) - Unredacted - Level 3 - Viewable by Court Only. (cpear) (Entered: 02/19/2019)                                                                                                                                                                                                                                                      |
| 02/12/2019 | <a href="#">225</a> | TRIAL BRIEF <i>Plaintiff's Bench Brief on Willful Infringement</i> by Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Walsworth, Ian) (Entered: 02/12/2019)                                                                                                                                                                   |
| 02/12/2019 | <a href="#">227</a> | COURTROOM MINUTES for proceedings held before Judge Raymond P. Moore: Jury Trial - Day 2 held on 2/12/2019. Trial continues. Court Reporter: Tammy Hoffschilt. (cpear) (Entered: 02/13/2019)                                                                                                                                                                 |
| 02/13/2019 | <a href="#">226</a> | TRIAL BRIEF <i>re: unclaimed embodiments</i> by Defendants Chase Honnecke, Von Honnecke, S&H Heating, A/C, Sheetmetal Co., S&H Sheet Metal, Inc.. (Terrell, Scott) (Entered: 02/13/2019)                                                                                                                                                                     |
| 02/13/2019 | <a href="#">228</a> | TRIAL BRIEF [ <i>Bench Brief on Induced Infringement</i> ] by Counter Defendants James Clay Walters, James Clay Walters, James Clay Walters, Plaintiff James Clay Walters. (Attachments: # <a href="#">1</a> Exhibit A)(Walsworth, Ian) (Entered: 02/13/2019)                                                                                                |
| 02/13/2019 | <a href="#">229</a> | COURTROOM MINUTES for proceedings held before Judge Raymond P. Moore: Jury Trial - Day 3 held on 2/13/2019. Trial continues. Court Reporter: Tammy Hoffschilt. (cpear) (Entered: 02/14/2019)                                                                                                                                                                 |
| 02/14/2019 | 230                 | Setting Hearings: Jury Trial continues on 2/15/2019 09:00 AM, jury deliberation. Text Only Entry (cpear) (Entered: 02/15/2019)                                                                                                                                                                                                                               |
| 02/14/2019 | <a href="#">231</a> | COURTROOM MINUTES for proceedings held before Judge Raymond P. Moore: Jury Trial - Day 4 held on 2/14/2019. Trial continues. Court Reporter: Tammy Hoffschilt. (cpear) (Entered: 02/15/2019)                                                                                                                                                                 |



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| 02/14/2019 | <a href="#">235</a> | STIPULATION AND ORDER REGARDING CUSTODY OF EXHIBITS AND DEPOSITIONS (cpear) (Entered: 02/19/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| 02/15/2019 | <a href="#">232</a> | COURTROOM MINUTES for proceedings held before Judge Raymond P. Moore: Jury Trial - Day 5 completed on 2/15/2019. Court Reporter: Tracy Weir. (cpear) (Entered: 02/19/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| 02/15/2019 | <a href="#">236</a> | CRD copy - Plaintiffs' Exhibit List. (cpear) (Entered: 02/19/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| 02/15/2019 | <a href="#">237</a> | CRD copy - Defendants' Exhibit List. (cpear) (Entered: 02/19/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| 02/15/2019 | <a href="#">238</a> | Jury Instructions. (cpear) (Entered: 02/19/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 02/15/2019 | <a href="#">239</a> | Jury Note #1 - Unredacted - Level 3 - Viewable by Court Only. (cpear) (Entered: 02/19/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 02/15/2019 | <a href="#">240</a> | Jury Note #1. (cpear) (Entered: 02/19/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 02/15/2019 | <a href="#">241</a> | Jury Note #2 - Unredacted - Level 3 - Viewable by Court Only. (cpear) (Entered: 02/19/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 02/15/2019 | <a href="#">242</a> | Jury Note #2. (cpear) (Entered: 02/19/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 02/15/2019 | <a href="#">243</a> | Jury Verdict - Unredacted - Level 3 - Viewable by Court Only. (cpear) (Entered: 02/19/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 02/15/2019 | <a href="#">244</a> | Jury Verdict. (cpear) (Entered: 02/19/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 02/19/2019 | <a href="#">245</a> | TRIAL BRIEF 35 U.S.C. 103 Obviousness Invalidity by Defendants Chase Honnecke, Von Honnecke, S&H Heating, A/C, Sheetmetal Co., S&H Sheet Metal, Inc.. (Terrell, Scott) (Entered: 02/19/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 02/28/2019 | <a href="#">246</a> | TRANSCRIPT of Jury Trial day 1 held on February 11, 2019 before Judge Moore. Pages: 1-148.<br><b>NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at <a href="http://www.cod.uscourts.gov">www.cod.uscourts.gov</a>.</b><br>Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (thoff, ) (Entered: 02/28/2019)   |
| 02/28/2019 | <a href="#">247</a> | TRANSCRIPT of Jury Trial day 2 held on February 12, 2019 before Judge Moore. Pages: 149-402.<br><b>NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at <a href="http://www.cod.uscourts.gov">www.cod.uscourts.gov</a>.</b><br>Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (thoff, ) (Entered: 02/28/2019) |
| 02/28/2019 | <a href="#">248</a> | TRANSCRIPT of Jury Trial day 3 held on February 13, 2019 before Judge Moore. Pages: 403-688.<br><b>NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                     |

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|            |                     | <b>the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at <a href="http://www.cod.uscourts.gov">www.cod.uscourts.gov</a>.</b> Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (thoff, ) (Entered: 02/28/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 02/28/2019 | <a href="#">249</a> | TRANSCRIPT of Jury Trial day 4 held on February 14, 2019 before Judge Moore. Pages: 689-890. <b>NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at <a href="http://www.cod.uscourts.gov">www.cod.uscourts.gov</a>.</b> Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (thoff, ) (Entered: 02/28/2019)                                                                                                                                                                                                                                  |
| 03/06/2019 | <a href="#">250</a> | Corrected TRANSCRIPT of Jury Trial held on February 12, 2019 before Judge Moore. Pages: 149-402. <b>NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at <a href="http://www.cod.uscourts.gov">www.cod.uscourts.gov</a>.</b> Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (thoff, ) Counsel contacted the reporter and asked me to listen to page 330 line 8 regarding "doesn't" vs "does" and after listening to the audio several times, I agree that it should say "does." The transcript has been corrected. (Entered: 03/06/2019) |
| 03/11/2019 | <a href="#">251</a> | TRIAL BRIEF <i>Colorado Box Company, Inc.'s Response to Defendants' Post-Trial Brief on Obviousness</i> by Plaintiff Colorado Box Company, Inc.. (Walsworth, Ian) (Entered: 03/11/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 03/14/2019 | <a href="#">252</a> | MOTION to Withdraw as Attorney <i>for defendants</i> by Defendants Chase Honnecke, Von Honnecke, S&H Sheet Metal, Inc.. (Terrell, Scott) (Entered: 03/14/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| 03/14/2019 | <a href="#">253</a> | NOTICE of Entry of Appearance by Gregory Scot Tamkin on behalf of Chase Honnecke, Chase Honnecke, Von Honnecke, Von Honnecke, S&H Heating, A/C, Sheetmetal Co., S&H Sheet Metal, Inc. Attorney Gregory Scot Tamkin added to party Chase Honnecke(pty:dft), Attorney Gregory Scot Tamkin added to party Chase Honnecke(pty:cc), Attorney Gregory Scot Tamkin added to party Chase Honnecke(pty:cc), Attorney Gregory Scot Tamkin added to party Von Honnecke (pty:cc), Attorney Gregory Scot Tamkin added to party Von Honnecke (pty:dft), Attorney Gregory Scot Tamkin added to party Von Honnecke (pty:cc), Attorney Gregory Scot Tamkin added to party S&H Heating, A/C, Sheetmetal Co.(pty:cc), Attorney Gregory Scot Tamkin added to party S&H Heating, A/C, Sheetmetal Co.(pty:dft), Attorney Gregory Scot Tamkin added to party S&H Sheet Metal, Inc.(pty:dft) (Tamkin, Gregory) (Entered: 03/14/2019)                                                                                                                                                                                                    |
| 03/14/2019 | <a href="#">254</a> | NOTICE of Entry of Appearance by Scott P. Sinor on behalf of Chase Honnecke, Chase Honnecke, Von Honnecke, Von Honnecke, S&H Heating, A/C, Sheetmetal Co., S&H Sheet Metal, Inc. Attorney Scott P. Sinor added to party Chase Honnecke(pty:dft), Attorney Scott P. Sinor added to party Chase Honnecke(pty:cc), Attorney Scott P. Sinor added to party Von                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |

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|            |                     | Honnecke (pty:cc), Attorney Scott P. Sinor added to party Von Honnecke (pty:dft), Attorney Scott P. Sinor added to party Von Honnecke (pty:cc), Attorney Scott P. Sinor added to party Von Honnecke (pty:cc), Attorney Scott P. Sinor added to party S&H Heating, A/C, Sheetmetal Co.(pty:cc), Attorney Scott P. Sinor added to party S&H Heating, A/C, Sheetmetal Co.(pty:dft), Attorney Scott P. Sinor added to party S&H Sheet Metal, Inc.(pty:dft) (Sinor, Scott) (Entered: 03/14/2019)                                                                                                                             |
| 03/15/2019 | 255                 | ORDER: Upon consideration of defense counsel's Motion to Withdraw <a href="#">252</a> and the entry of appearance of new defense counsel <a href="#">253</a> <a href="#">254</a> , the Motion <a href="#">252</a> is GRANTED. Attorney Scott L. Terrell is granted leave to withdraw from his representation of Defendants and he shall be removed from electronic service in this matter. SO ORDERED by Judge Raymond P. Moore on 3/15/2019. (Text Only Entry ) (rmsec ) (Entered: 03/15/2019)                                                                                                                         |
| 03/25/2019 | <a href="#">256</a> | TRIAL BRIEF <i>Defendants' Reply in Support of their Post-Trial Brief - Obviousness-Invalidity</i> by Defendants Chase Honnecke, Von Honnecke, S&H Sheet Metal, Inc.. (Attachments: # <a href="#">1</a> Exhibit Exhibit A-1_ U.S. Patent No. 8,999,029 Invalidity Chart - Allen and Wu, # <a href="#">2</a> Exhibit Exhibit B-1_ U.S. Patent No. 8,999,029 Invalidity Chart - Allen and Gustafson, # <a href="#">3</a> Exhibit Exhibit C-1_ U.S. Patent No. 8,999,029 Invalidity Chart - Allen and Smith & Willis)(Tamkin, Gregory) (Entered: 03/25/2019)                                                               |
| 06/04/2019 | <a href="#">257</a> | ORDER ON OBVIOUSNESS The Court finds the claims of the '029 Patent at issue are not invalid as obvious. To the extent Defendants' papers are construed as a motion for judgment as a matter of law, it is ORDERED that the motion is DENIED. ORDERED by Judge Raymond P. Moore on 6/4/2019. (cthom, ) (Entered: 06/04/2019)                                                                                                                                                                                                                                                                                             |
| 06/04/2019 | <a href="#">258</a> | ORDER On or before Tuesday, June 11, 2019, the parties shall file a status report on whether there are any other pending matters. ORDERED by Judge Raymond P. Moore on 6/4/2019. (cthom, ) (Entered: 06/04/2019)                                                                                                                                                                                                                                                                                                                                                                                                        |
| 06/05/2019 | <a href="#">259</a> | <b>WITHDRAWN</b> FINAL JUDGMENT pursuant to <a href="#">244</a> Jury Verdict. Entered by the Clerk of the Court on 6/5/2019. (cpear) Modified t show withdrawn on 6/5/2019 (cthom, ). (Entered: 06/05/2019)                                                                                                                                                                                                                                                                                                                                                                                                             |
| 06/05/2019 | 260                 | MINUTE ORDER: This matter is before the Court sua sponte upon consideration that a final judgment was entered prematurely. Accordingly, the final judgment <a href="#">259</a> is hereby WITHDRAWN. SO ORDERED by Judge Raymond P. Moore on 6/5/2019. (Text Only Entry) (rmsec ) (Entered: 06/05/2019)                                                                                                                                                                                                                                                                                                                  |
| 06/11/2019 | <a href="#">261</a> | Joint STATUS REPORT by Counter Defendants Steven Lee Brandt, Steven Lee Brandt, Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters, James Clay Walters, James Clay Walters, Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Walsworth, Ian) (Entered: 06/11/2019)                                                                                                                                                                                                                                                                                                         |
| 06/11/2019 | <a href="#">262</a> | FINAL JUDGMENT pursuant to <a href="#">244</a> Jury Verdict. Entered by the Clerk of the Court on 6/11/2019. (cpear) (Entered: 06/11/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 06/25/2019 | <a href="#">263</a> | Proposed Bill of Costs by Counter Defendants Steven Lee Brandt, Steven Lee Brandt, Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters, James Clay Walters, James Clay Walters, Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Attachments: # <a href="#">1</a> Affidavit Declaration of Ian R. Walsworth, # <a href="#">2</a> Exhibit 1, # <a href="#">3</a> Exhibit 2, # <a href="#">4</a> Exhibit 3, # <a href="#">5</a> Exhibit 4, # <a href="#">6</a> Exhibit 5, # <a href="#">7</a> Exhibit 6, # <a href="#">8</a> Exhibit 7)(Walsworth, Ian) (Entered: 06/25/2019) |
| 07/09/2019 | <a href="#">264</a> | MOTION for Judgment <i>Renewed Fed.R.Civ.P 50 as a Matter of Law or in the Alternative for a New Trial</i> by Defendants Chase Honnecke, Von Honnecke, S&H Heating, A/C, Sheetmetal Co., S&H Sheet Metal, Inc., Counter Claimants Chase Honnecke, Chase Honnecke, Von Honnecke, Von Honnecke, Von Honnecke, Von Honnecke, S&H Heating, A/C,                                                                                                                                                                                                                                                                             |

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|            |                     | Sheetmetal Co.. (Attachments: # <a href="#">1</a> Exhibit 1 - '029 Patent, # <a href="#">2</a> Exhibit 2 - Trial Trans excerpts)(Tamkin, Gregory) (Entered: 07/09/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| 07/09/2019 | <a href="#">265</a> | MOTION for New Trial <i>Pursuant to Fed.R.Civ.P 59</i> by Defendants Chase Honnecke, Von Honnecke, S&H Heating, A/C, Sheetmetal Co., S&H Sheet Metal, Inc., Counter Claimants Chase Honnecke, Chase Honnecke, Von Honnecke, Von Honnecke, Von Honnecke, S&H Heating, A/C, Sheetmetal Co.. (Attachments: # <a href="#">1</a> Exhibit 1 - '029 Patent, # <a href="#">2</a> Exhibit 2 - Trial Trans excerpts, # <a href="#">3</a> Exhibit 3 - '029 Patent Anticipation by Allen, # <a href="#">4</a> Exhibit 4 - '029 Patent Anticipation by Gustafson, # <a href="#">5</a> Exhibit 5 - '029 Invalidity Chart-Allen and Wu, # <a href="#">6</a> Exhibit 6 - '029 Invalidity Chart-Allen and Gusfason, # <a href="#">7</a> Exhibit 7 - '029 Invalidity Chart-Allen and Smith & Willis, # <a href="#">8</a> Exhibit 8 - Trial Trans excerpts - Comments)(Tamkin, Gregory) (Entered: 07/09/2019)                                                                                                                         |
| 07/09/2019 | <a href="#">266</a> | MOTION to Alter Judgment <i>for Relief from Judgment Pursuant to Fed.R.Civ.P 60(b)</i> by Defendants Chase Honnecke, Von Honnecke, S&H Heating, A/C, Sheetmetal Co., S&H Sheet Metal, Inc., Counter Claimants Chase Honnecke, Chase Honnecke, Von Honnecke, Von Honnecke, Von Honnecke, S&H Heating, A/C, Sheetmetal Co.. (Attachments: # <a href="#">1</a> Exhibit 1 - Trial Trans excerpts)(Tamkin, Gregory) (Entered: 07/09/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| 07/10/2019 | <a href="#">267</a> | <b>STRICKEN</b> - MOTION for Damages <i>Post-trial Motion for Enhanced Damages</i> by Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Attachments: # <a href="#">1</a> Affidavit Declaration of Ian Walsworth, # <a href="#">2</a> Exhibit 1 of Declaration of Ian Walsworth, # <a href="#">3</a> Exhibit 2 of Declaration of Ian Walsworth, # <a href="#">4</a> Exhibit 3 of Declaration of Ian Walsworth, # <a href="#">5</a> Exhibit 4 of Declaration of Ian Walsworth, # <a href="#">6</a> Affidavit Declaration of James Walters, # <a href="#">7</a> Exhibit 1 of Declaration of James Walters, # <a href="#">8</a> Affidavit Declaration of Steven Brandt, # <a href="#">9</a> Exhibit 1 of Declaration of Steven Brandt) (Walsworth, Ian) Modified to Strike pursuant to <a href="#">298</a> Order on 3/18/2020 (rvill, ). (Entered: 07/10/2019)                                                                                                                            |
| 07/11/2019 | <a href="#">268</a> | <b>STRICKEN</b> - MOTION for Ruling <i>of Exceptional Case</i> by Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Attachments: # <a href="#">1</a> Affidavit Declaration of Ian Walsworth, # <a href="#">2</a> Exhibit 1 of Declaration of Ian Walsworth, # <a href="#">3</a> Exhibit 2 of Declaration of Ian Walsworth, # <a href="#">4</a> Affidavit Declaration of James Walters) (Walsworth, Ian) Modified to Strike pursuant to <a href="#">298</a> Order on 3/18/2020 (rvill, ). (Entered: 07/11/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| 07/12/2019 | <a href="#">269</a> | NOTICE of Entry of Appearance by Stephen Roger Weingold on behalf of Chase Honnecke, Chase Honnecke, Von Honnecke, Von Honnecke, S&H Heating, A/C, Sheetmetal Co., S&H Sheet Metal, Inc. Attorney Stephen Roger Weingold added to party Chase Honnecke(pty:dft), Attorney Stephen Roger Weingold added to party Chase Honnecke(pty:cc), Attorney Stephen Roger Weingold added to party Chase Honnecke(pty:cc), Attorney Stephen Roger Weingold added to party Von Honnecke (pty:cc), Attorney Stephen Roger Weingold added to party Von Honnecke (pty:dft), Attorney Stephen Roger Weingold added to party Von Honnecke (pty:cc), Attorney Stephen Roger Weingold added to party Von Honnecke (pty:cc), Attorney Stephen Roger Weingold added to party S&H Heating, A/C, Sheetmetal Co.(pty:cc), Attorney Stephen Roger Weingold added to party S&H Heating, A/C, Sheetmetal Co.(pty:dft), Attorney Stephen Roger Weingold added to party S&H Sheet Metal, Inc.(pty:dft) (Weingold, Stephen) (Entered: 07/12/2019) |
| 07/16/2019 | <a href="#">270</a> | CERTIFICATE OF COMPLIANCE <i>WITH D.C.COLO.LCIVR 54.1</i> re <a href="#">263</a> Proposed Bill of Costs, by Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Walsworth, Ian) (Entered: 07/16/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |



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| 07/19/2019 | <a href="#">271</a> | Costs Taxed by Clerk in the amount of \$11,987.24 against Defendants Honnecke, et al. and in favor of Plaintiffs Steven Lee Brandt, et al. Hearing held July 17, 2019. (ebutl) (Entered: 07/19/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| 07/30/2019 | <a href="#">272</a> | BRIEF in Opposition to <a href="#">264</a> MOTION for Judgment <i>Renewed Fed.R.Civ.P 50 as a Matter of Law or in the Alternative for a New Trial</i> filed by Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Walsworth, Ian) (Entered: 07/30/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| 07/30/2019 | <a href="#">273</a> | BRIEF in Opposition to <a href="#">265</a> MOTION for New Trial <i>Pursuant to Fed.R.Civ.P 59</i> filed by Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Walsworth, Ian) (Entered: 07/30/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| 07/30/2019 | <a href="#">274</a> | BRIEF in Opposition to <a href="#">266</a> MOTION to Alter Judgment <i>for Relief from Judgment Pursuant to Fed.R.Civ.P 60(b)</i> filed by Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Attachments: # <a href="#">1</a> Affidavit Declaration of Ian R. Walsworth, # <a href="#">2</a> Exhibit 1 to Declaration of Ian R. Walsworth, # <a href="#">3</a> Exhibit 2 to Declaration of Ian R. Walsworth, # <a href="#">4</a> Exhibit 3 to Declaration of Ian R. Walsworth, # <a href="#">5</a> Exhibit 4 to Declaration of Ian R. Walsworth, # <a href="#">6</a> Exhibit 5 to Declaration of Ian R. Walsworth, # <a href="#">7</a> Exhibit 6 to Declaration of Ian R. Walsworth, # <a href="#">8</a> Exhibit 7 to Declaration of Ian R. Walsworth, # <a href="#">9</a> Exhibit 8 to Declaration of Ian R. Walsworth, # <a href="#">10</a> Exhibit 9 to Declaration of Ian R. Walsworth)(Walsworth, Ian) (Entered: 07/30/2019) |
| 07/31/2019 | <a href="#">275</a> | MOTION to Strike <a href="#">267</a> MOTION for Damages <i>Post-trial Motion for Enhanced Damages</i> by Defendants Chase Honnecke, Von Honnecke, S&H Sheet Metal, Inc.. (Sinor, Scott) (Entered: 07/31/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| 07/31/2019 | <a href="#">276</a> | RESPONSE to <a href="#">267</a> MOTION for Damages <i>Post-trial Motion for Enhanced Damages</i> filed by Defendant Von Honnecke. (Attachments: # <a href="#">1</a> Exhibit A - Trial Transcript Excerpts, # <a href="#">2</a> Exhibit B - Nonpublication Request, # <a href="#">3</a> Exhibit C - Trial Exhibit 76, # <a href="#">4</a> Exhibit D - Reilly Declaration, # <a href="#">5</a> Exhibit E - '029 Patent, # <a href="#">6</a> Exhibit F - Trial Exhibit 47)(Tamkin, Gregory) (Entered: 07/31/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| 07/31/2019 | <a href="#">277</a> | RESPONSE to <a href="#">268</a> MOTION for Ruling of <i>Exceptional Case</i> filed by Defendants Chase Honnecke, Von Honnecke, S&H Sheet Metal, Inc.. (Attachments: # <a href="#">1</a> Exhibit A - Trial Transcript Excerpts, # <a href="#">2</a> Exhibit B - Nonpublication Request, # <a href="#">3</a> Exhibit C - Trial Exhibit 76, # <a href="#">4</a> Exhibit D - Reilly Declaration, # <a href="#">5</a> Exhibit E - Trial Exhibit 13, # <a href="#">6</a> Exhibit F - Trial Exhibit 20)(Tamkin, Gregory) (Entered: 07/31/2019)                                                                                                                                                                                                                                                                                                                                                                                                                        |
| 08/05/2019 | <a href="#">278</a> | TRANSCRIPT of Jury Trial - Day 5 held on 2-15-19 before Judge Moore. Pages: 891-902. <br> <b>NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at <a href="http://www.cod.uscourts.gov">www.cod.uscourts.gov</a>.</b> <br> Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. (twair, ) (Entered: 08/05/2019)                                                                               |
| 08/13/2019 | <a href="#">279</a> | REPLY to Response to <a href="#">264</a> MOTION for Judgment <i>Renewed Fed.R.Civ.P 50 as a Matter of Law or in the Alternative for a New Trial</i> filed by Defendants Chase Honnecke, Von Honnecke, S&H Heating, A/C, Sheetmetal Co., S&H Sheet Metal, Inc., Counter Claimants Chase Honnecke, Chase Honnecke, Von Honnecke, Von Honnecke, Von Honnecke, S&H Heating, A/C, Sheetmetal Co.. (Attachments: # <a href="#">1</a> Exhibit 3 - Trial Transcripts)(Tamkin, Gregory) (Entered: 08/13/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                           |

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| 08/13/2019 | <a href="#">280</a> | REPLY to Response to <a href="#">265</a> MOTION for New Trial <i>Pursuant to Fed.R.Civ.P 59</i> filed by Defendants Chase Honnecke, Von Honnecke, S&H Heating, A/C, Sheetmetal Co., S&H Sheet Metal, Inc., Counter Claimants Chase Honnecke, Chase Honnecke, Von Honnecke, Von Honnecke, Von Honnecke, S&H Heating, A/C, Sheetmetal Co.. (Attachments: # <a href="#">1</a> Exhibit 9 - Trial Transcripts)(Tamkin, Gregory) (Entered: 08/13/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 08/13/2019 | <a href="#">281</a> | REPLY to Response to <a href="#">266</a> MOTION to Alter Judgment <i>for Relief from Judgment Pursuant to Fed.R.Civ.P 60(b)</i> filed by Defendants Chase Honnecke, Von Honnecke, S&H Heating, A/C, Sheetmetal Co., S&H Sheet Metal, Inc., Counter Claimants Chase Honnecke, Chase Honnecke, Von Honnecke, Von Honnecke, Von Honnecke, S&H Heating, A/C, Sheetmetal Co.. (Attachments: # <a href="#">1</a> Exhibit 2 - Trial Transcripts)(Tamkin, Gregory) (Entered: 08/13/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 08/14/2019 | <a href="#">282</a> | REPLY to Response to <a href="#">268</a> MOTION for Ruling of <i>Exceptional Case</i> filed by Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Attachments: # <a href="#">1</a> Declaration of James Walters, # <a href="#">2</a> Declaration of Steven Brandt)(Walsworth, Ian) (Entered: 08/14/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 08/14/2019 | <a href="#">283</a> | REPLY to Response to <a href="#">267</a> MOTION for Damages <i>Post-trial Motion for Enhanced Damages</i> filed by Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Walsworth, Ian) (Entered: 08/14/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| 08/21/2019 | <a href="#">284</a> | MOTION for Leave to <i>File Sur-Reply in Opposition to Defendants' Motion for Judgment as a Matter of Law or New Trial</i> by Counter Defendants Steven Lee Brandt, Steven Lee Brandt, Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters, James Clay Walters, James Clay Walters, Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Attachments: # <a href="#">1</a> Exhibit 1 Sur-Reply)(Walsworth, Ian) (Entered: 08/21/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| 08/21/2019 | <a href="#">285</a> | RESPONSE in Opposition to <a href="#">275</a> MOTION to Strike <a href="#">267</a> MOTION for Damages <i>Post-trial Motion for Enhanced Damages</i> filed by Counter Defendants Steven Lee Brandt, Steven Lee Brandt, Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters, James Clay Walters, James Clay Walters, Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Walsworth, Ian) (Entered: 08/21/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 08/21/2019 | <a href="#">286</a> | MOTION for Leave to <i>File Sur-Reply to Correct Plaintiffs' Evidentiary Misstatements in Their</i> <a href="#">282</a> Reply to Response to Motion, by Defendants Chase Honnecke, Von Honnecke, S&H Sheet Metal, Inc.. (Attachments: # <a href="#">1</a> Exhibit A - Sur-Reply to Correct Plaintiffs' Evidentiary Misstatements in Their Reply in Support of Post-Judgment Motion for Ruling of Exceptional Case)(Tamkin, Gregory) (Entered: 08/21/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 08/22/2019 | 287                 | ORDER:This matter is before the Court on two unopposed motions to file sur-replies. One motion is filed by plaintiffs <a href="#">284</a> and the other motion by defendants <a href="#">286</a> . Both motions assert that leave to file such sur-replies should be granted because the other side allegedly made multiple incorrect or inaccurate statements or made blatant misrepresentations and committed potential perjury, all of which the movant allegedly needs to address or correct. The Court hopes this is not so and errors, if any, were simple mistakes or inadvertent. After all, parties are expected to correct any false or incorrect statements made to the court. See Fed. R. Civ. P. 11 and Colo. RPC 3.3. Professionalism is suffering in this case, and that needs to stop. Regardless, the issues the parties raise require a resolution by the Court. Accordingly, the motions <a href="#">284</a> <a href="#">286</a> are GRANTED and ECF No. 284-1 and ECF No. 286-1 shall be docketed as separate entries. SO ORDERED by Judge Raymond P. Moore on 8/22/2019. (Text Only Entry)(rmsec ) (Entered: 08/22/2019) |
| 08/22/2019 | <a href="#">288</a> | SURREPLY in Opposition to <a href="#">264</a> Renewed MOTION for Judgment Fed.R.Civ.P 50 as a Matter of Law or in the Alternative for a New Trial filed by Plaintiffs Colorado Box                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |



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|            |                     | Company, Inc., James Clay Walters. (evana, ) (Entered: 08/22/2019)                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| 08/22/2019 | <a href="#">289</a> | SURREPLY to Correct Plaintiff's Evidentiary Misstatements in their Reply in support of <a href="#">268</a> MOTION for Ruling of Exceptional Case filed by Defendants Chase Honnecke, Von Honnecke, S&H Sheet Metal, Inc.. (evana, ) (Entered: 08/22/2019)                                                                                                                                                                                                                                                                                        |
| 08/29/2019 | <a href="#">290</a> | REPLY in Support of Defendants <a href="#">275</a> MOTION to Strike Plaintiffs' Post-Judgment Motion for Enhanced Damages Pursuant to 35 U.S.C. § 284 and <a href="#">268</a> Motion for Exception Case filed by Defendants Chase Honnecke, Von Honnecke, S&H Heating, A/C, Sheetmetal Co., S&H Sheet Metal, Inc., Counter Claimants Chase Honnecke, Chase Honnecke, Von Honnecke, Von Honnecke, Von Honnecke, S&H Heating, A/C, Sheetmetal Co.. (Sinor, Scott) Modified to correct motion linkage on 1/30/2020 (rvill, ). (Entered: 08/29/2019) |
| 08/30/2019 | <a href="#">291</a> | SUPPLEMENTAL REPLY in Support of Plaintiffs' Post-Judgment <a href="#">268</a> MOTION for Ruling of Exceptional Case filed by Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Attachments: # <a href="#">1</a> Substitute Declaration of James Walters, # <a href="#">2</a> Substitute Declaration of Steven Brandt)(Walsworth, Ian) Modified to correct title of document on 1/30/2020 (rvill, ). (Entered: 08/30/2019)                                                                                          |
| 12/23/2019 | <a href="#">292</a> | NOTICE of Lien by Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters (Attachments: # <a href="#">1</a> Exhibit 1, # <a href="#">2</a> Exhibit 2)(Walsworth, Ian) (Entered: 12/23/2019)                                                                                                                                                                                                                                                                                                                                 |
| 02/14/2020 | <a href="#">293</a> | Unopposed MOTION to Withdraw as Attorney by Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters. (Attachments: # <a href="#">1</a> Proposed Order (PDF Only)) (Walsworth, Ian) (Entered: 02/14/2020)                                                                                                                                                                                                                                                                                                                    |
| 02/14/2020 | <a href="#">294</a> | ORDER: Upon consideration of the motion of withdrawal <a href="#">293</a> and finding compliance with D.C.COLO.L.AttyR 5(b), and being otherwise fully advised, the Court <b>ORDERS</b> as follows: (1) the motion is GRANTED; and (2) the Clerk is directed to remove attorney Ian R. Walsworth from ECF notification for this case. SO ORDERED by Judge Raymond P. Moore on 2/14/2020. (Text Only Entry)(rmsec ) (Entered: 02/14/2020)                                                                                                         |
| 03/18/2020 | <a href="#">295</a> | ORDER on "Defendants' Renewed Fed. R. Civ. P. 50 Motion for Judgment as a Matter of Law or in the Alternative New Trial." It is ORDERED that Defendants Renewed Fed. R. Civ. P. 50 Motion for Judgment as a Matter of Law or in the Alternative New Trial (ECF No. <a href="#">264</a> ) is DENIED. By Judge Raymond P. Moore on 03/18/2020. (rvill, ) (Entered: 03/18/2020)                                                                                                                                                                     |
| 03/18/2020 | <a href="#">296</a> | ORDER on Defendants' Motion for New Trial Pursuant to Fed. R. Civ. P. 59. It is ORDERED that Defendants' Motion for New Trial Pursuant to Fed. R. Civ. P. 59 (ECF No. <a href="#">265</a> ) is DENIED. By Judge Raymond P. Moore on 03/18/2020. (rvill, ) (Entered: 03/18/2020)                                                                                                                                                                                                                                                                  |
| 03/18/2020 | <a href="#">297</a> | ORDER on Defendants' Motion for Relief from Judgment Pursuant to Fed. R. Civ. P. 60(b). It is ORDERED that Defendants' Motion for Relief from Judgment Pursuant to Fed. R. Civ. P. 60(b) (ECF No. <a href="#">266</a> ) is DENIED. By Judge Raymond P. Moore on 03/18/2020. (rvill, ) (Entered: 03/18/2020)                                                                                                                                                                                                                                      |
| 03/18/2020 | <a href="#">298</a> | ORDER on Defendants' Motion to Strike. The Court <b>ORDERS</b> as follows: Defendants' Motion to Strike Plaintiffs' Post-Judgment Motion for Enhanced Damages Pursuant to 35 U.S.C. § 284 and Motion for Exceptional Case (ECF No. <a href="#">275</a> ) is GRANTED; Plaintiffs' Motion for Enhanced Damages (ECF No. <a href="#">267</a> ) is STRICKEN; and Plaintiffs' Motion for Exceptional Case (ECF No. <a href="#">268</a> ) is STRICKEN. By Judge Raymond P. Moore on 03/18/2020. (rvill, ) (Entered: 03/18/2020)                        |

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| 04/15/2020 | <a href="#">299</a> | NOTICE OF APPEAL to FEDERAL CIRCUIT as to <a href="#">262</a> Judgment by Defendants Chase Honnecke, Von Honnecke, S&H Sheet Metal, Inc. (Filing fee \$ 505, Receipt Number 1082-7253310) (Tamkin, Gregory) (Entered: 04/15/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 04/16/2020 | <a href="#">300</a> | LETTER Transmitting Notice of Appeal to all counsel advising of the transmittal of the <a href="#">299</a> Notice of Appeal filed by S&H Sheet Metal, Inc., Von Honnecke, Chase Honnecke to the Federal Circuit Court of Appeals. ( Retained Counsel, Fee paid,) (Attachments: # <a href="#">1</a> Preliminary Record, # <a href="#">2</a> Docket Sheet)(rvill, ) (Entered: 04/16/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| 04/28/2020 | <a href="#">301</a> | Federal Circuit Case Number 2020-1753 for <a href="#">299</a> Notice of Appeal filed by S&H Sheet Metal, Inc., Von Honnecke, Chase Honnecke. (rvill, ) (Entered: 04/28/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| 04/28/2020 | <a href="#">302</a> | NOTICE OF APPEAL to FEDERAL CIRCUIT as to <a href="#">271</a> Costs Taxed, <a href="#">174</a> Order on Motion to Compel, <a href="#">144</a> Order, <a href="#">181</a> Order on Motion to Exclude, <a href="#">178</a> Order on Motion for Summary Judgment,, <a href="#">197</a> Order on Motion to Exclude, <a href="#">222</a> Order on Motion in Limine, Status Conference, <a href="#">298</a> Order on Motion for Damages,, Order on Motion for Ruling,, Order on Motion to Strike, <a href="#">262</a> Judgment filed by Counter Defendants Steven Lee Brandt, Steven Lee Brandt, Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters, James Clay Walters, James Clay Walters, Plaintiffs Steven Lee Brandt, Colorado Box Company, Inc., James Clay Walters (Filing fee \$ 505, Receipt Number 1082-7271286) (Mauke, William) (Entered: 04/28/2020) |
| 04/29/2020 | <a href="#">303</a> | LETTER Transmitting Notice of Cross-Appeal to all counsel advising of the transmittal of the <a href="#">302</a> Notice of Cross-Appeal, filed by Colorado Box Company, Inc., James Clay Walters, Steven Lee Brandt to the Federal Circuit Court of Appeals. ( Retained Counsel, Fee paid,) (Attachments: # <a href="#">1</a> Preliminary Record, # <a href="#">2</a> Certified Docket Sheet)(rvill, ) Modified to attach correct PDF main document on 4/29/2020 (rvill, ). (Entered: 04/29/2020)                                                                                                                                                                                                                                                                                                                                                                          |
| 04/29/2020 | <a href="#">304</a> | TRANSCRIPT ORDER FORM re <a href="#">299</a> Notice of Appeal by Defendants Chase Honnecke, Von Honnecke, S&H Sheet Metal, Inc. (Attachments: # <a href="#">1</a> Statement of Issues)(Tamkin, Gregory) (Entered: 04/29/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 05/01/2020 | <a href="#">305</a> | Federal Circuit Case Number 2020-1761 for <a href="#">302</a> Notice of Appeal, filed by Colorado Box Company, Inc., James Clay Walters, Steven Lee Brandt. (rvill, ) (Entered: 05/01/2020)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| 11/17/2020 | <a href="#">306</a> | ORDER re Appeal to Federal Circuit <a href="#">299</a> Notice of Appeal filed by S&H Sheet Metal, Inc., Von Honnecke, Chase Honnecke, and <a href="#">302</a> Notice of Appeal filed by Colorado Box Company, Inc., James Clay Walters, Steven Lee Brandt. ORDER granting stipulated dismissal filed by Cross-Appellants Steven Lee Brandt, James Clay Walters, Colorado Box Company, Inc. and Appellants Von Honnecke, Chase Honnecke and S&H Sheet Metal, Inc. in 20-1753; voluntarily dismissing appeal pursuant to FRAP 42(b); issuing mandate. (USCA Case No. 2020-1753, 2020-1761) (rvill, ) (Entered: 11/17/2020)                                                                                                                                                                                                                                                   |

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